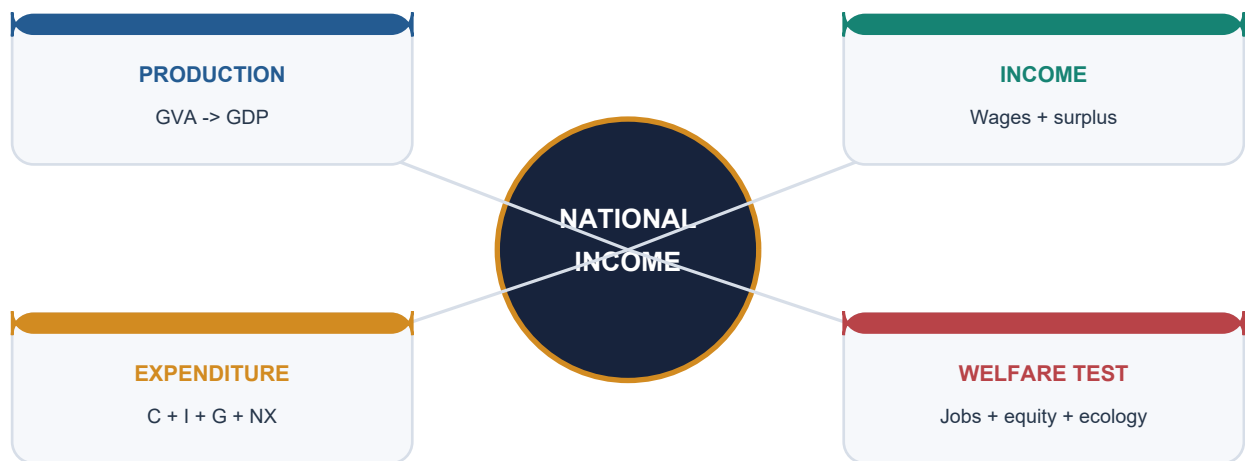


Polity 38 — Lokpal and Lokayuktas

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 38 — Lokpal and Lokayuktas

Complete independent learning session + verified PYQ + solved practice workbook + final consolidated register notes

Legal/current control date: 19 August 2026 (Asia/Kolkata)

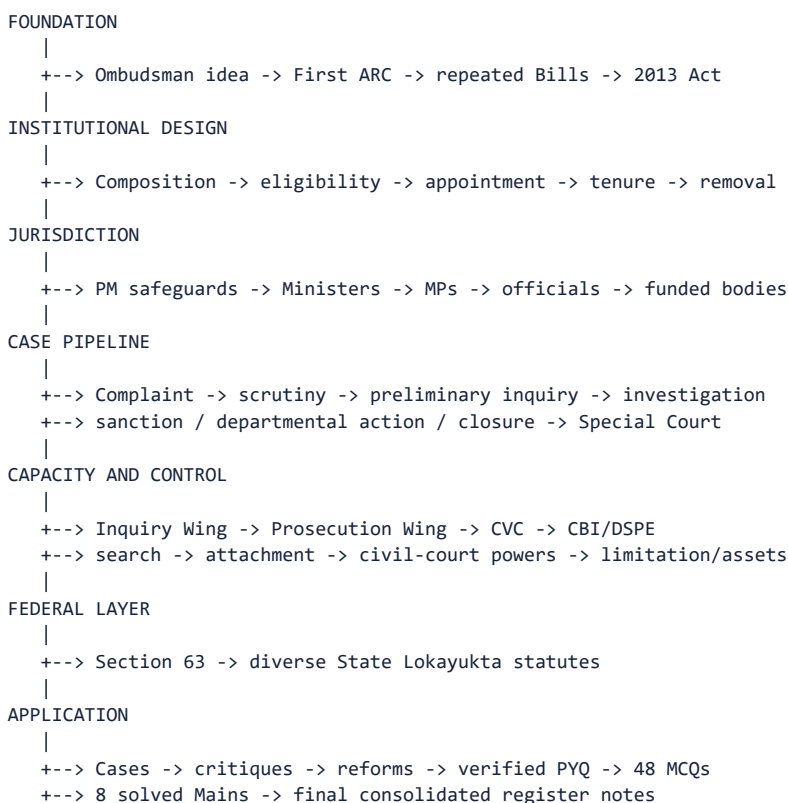
Tag key: [FACT] = directly supported by a named legal, judicial, official or local-book source; [ANALYSIS] = reasoned examination; [CURRENT] = checked against official material for the control date; [LIMIT] = qualification, unresolved issue or deliberately unfrozen fact. **Answer-writing discipline:** claim -> named evidence -> analysis -> qualification.

How to Use This Package

[FACT] This package reads the current India Code text of the **Lokpal and Lokayuktas Act, 2013**, the **Lokpal (Complaint) Rules, 2020**, official Lokpal circulars, notifications and organogram, DoPT material, Supreme Court decisions and the local Polity sources together.

[LIMIT] It does not freeze current officeholders, complaint/disposal totals, State-wise vacancies or a count of States with a presently functioning Lokayukta. Those facts change faster than the governing legal architecture.

Visual 01 — Learning Roadmap



Caption: The topic must be learnt as a legal process, not as a list of slogans about an “anti-corruption body”.

1. Core Idea and Legal Identity

[FACT] The Lokpal is a **statutory body**, established for the Union by the Lokpal and Lokayuktas Act, 2013. It is not created by the Constitution and is not a constitutional court, police force or general public-grievance commission.

[FACT] Section 2 defines a complaint as one made in the prescribed form alleging that a covered public servant committed an offence punishable under the Prevention of Corruption Act, 1988. This makes the institution corruption-specific.

[ANALYSIS] The ombudsman idea supplies the accountability logic, but the enacted Indian model is more than a classical recommendatory grievance office. It can route preliminary inquiry and investigation, supervise the DSPE/CBI

in referred matters, grant prosecution sanction, use attachment machinery and direct prosecution under the Act.

[LIMIT] These powers do not make Lokpal the final judge of criminal guilt. Investigation, prosecution and adjudication remain legally distinct stages; conviction or acquittal belongs to the competent court.

Visual 02 — Legal Identity Matrix

Question	Correct position	Named evidence	Exam trap
What creates Lokpal?	Parliamentary statute	Lokpal and Lokayuktas Act, 2013	Not a constitutional body
What type of complaint?	Alleged Prevention of Corruption Act offence by a covered public servant	Section 2(1)(e)	Not every service grievance
Does it investigate every case itself?	It may conduct preliminary inquiry through its Inquiry Wing; investigation is assigned to an agency, including DSPE/CBI	Sections 11 and 20	Inquiry is not police investigation
Does it prosecute?	Prosecution Wing or investigating agency may prosecute when directed	Sections 12 and 20(8)	Direction to prosecute is not conviction
Who determines guilt?	Special Court/competent court	Sections 24, 35 and criminal procedure	Lokpal is not a criminal court

Caption: Legal source, entry condition, process power and final outcome must be kept separate.

Visual 03 — Claim-to-Conclusion Discipline

CLAIM

"Lokpal has meaningful anti-corruption powers"

NAMED EVIDENCE

ss.20, 23, 25, 29-33 + Special Court

ANALYSIS

It can move a complaint across inquiry, investigation and prosecution

QUALIFICATION

No general suo motu jurisdiction; no conviction power; agency dependence remains

Caption: A balanced UPSC answer proves institutional capacity and then identifies its legal boundary.

2. Evolution: Ombudsman to the 2013 Act

[FACT] The modern ombudsman institution is conventionally traced to Sweden in 1809. Local Polity sources explain its diffusion to other jurisdictions as a mechanism for receiving complaints about administrative wrongdoing.

[FACT] India's First Administrative Reforms Commission, in its 1966 work on redress of citizens' grievances, recommended two institutions: a **Lokpal at the Union level** and **Lokayuktas at the State level**.

[FACT] Successive Lokpal Bills beginning in 1968 repeatedly lapsed, were withdrawn or failed to complete enactment. The political and civil-society mobilisation of 2011 formed part of the bounded context in which the later Bill was debated.

[FACT] The Lokpal and Lokayuktas Act received presidential assent on **1 January 2014** and came into force on **16 January 2014** through Gazette notification.

[ANALYSIS] The long legislative history shows a recurring design conflict: how to create an institution strong enough to scrutinise high public office without merging complainant, investigator, prosecutor and judge.

[LIMIT] Civil-society mobilisation explains political salience; it is not the legal source of the institution. The enacted statute, rules and judicial interpretation control the present framework.

Visual 04 — Evolution Timeline

Milestone	Development	Exam significance
1809	Swedish ombudsman	Comparative origin
1966	First ARC recommends Lokpal and Lokayuktas	Indian institutional proposal
1968 onward	Repeated parliamentary Bills	Long implementation delay
2011	Renewed public mobilisation and legislative activity	Political context only
2013	Parliament enacts the law	Statutory foundation
1 Jan 2014	Presidential assent	Act No. 1 of 2014
16 Jan 2014	Commencement notification	Legal operation begins
2016	Section 44 substituted	Asset-declaration framework changed
2017	<i>Common Cause</i> holds Act workable despite LoP vacancy	Appointment blockage rejected
2019	Initial appointments made	Institutional constitution in practice
2024	Inquiry Wing formally constituted	Statutory wing moved beyond paper creation
2025	Prosecution Wing constituted and Gazette-notified	Formal prosecution architecture created
2026	Circular No. 01/2026 consolidates complaint-processing procedure	Current procedural control

Caption: Enactment, appointment, wing constitution and procedural consolidation are separate implementation stages.

Visual 05 — Ombudsman, Grievance and Criminal Process

Model	Core concern	Typical output	Lokpal position
Classical ombudsman	Maladministration/unfairness	Recommendation/report	Historical inspiration
Public grievance portal	Service-delivery complaint	Administrative redress	Not Lokpal's statutory core
Vigilance institution	Integrity and departmental vigilance	Advice/disciplinary route	CVC-linked layer
Police investigation	Evidence collection for offences	Police report/charge-sheet	CBI/agency role
Lokpal model	Prescribed corruption complaint against covered public servant	Inquiry routing, supervision, sanction, prosecution direction	Hybrid statutory ombudsman
Court	Criminal adjudication	Conviction/acquittal/sentence	Separate final stage

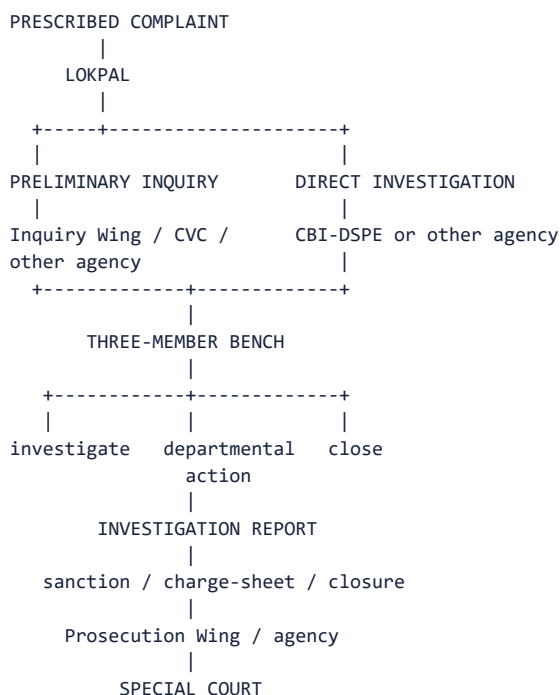
Caption: Calling every accountability mechanism an “ombudsman” conceals decisive differences in jurisdiction and legal output.

3. Statutory Architecture

[FACT] The Act creates a multi-stage system: Lokpal benches decide how complaints proceed; the Inquiry Wing undertakes preliminary inquiry; the CVC receives prescribed categories; investigating agencies conduct investigation; the Prosecution Wing or agency prosecutes; Special Courts adjudicate.

[ANALYSIS] The architecture deliberately disperses power. This reduces the danger of a single institution controlling every stage, but creates coordination, delay and responsibility-diffusion risks.

Visual 06 — Statutory Architecture



Caption: The statute separates screening, preliminary inquiry, investigation, prosecution and adjudication.

Visual 07 — Power Holder by Stage

Stage	Principal actor	Legal task	What it does not decide
Filing/scrutiny	Registry and Lokpal bench	Form, jurisdiction, maintainability	Criminal guilt
Preliminary inquiry	Inquiry Wing/CVC/agency	Whether prima facie case exists	Final culpability
Investigation	CBI/DSPE or other agency	Collect admissible evidence	Conviction
Post-report decision	At least three Lokpal Members	Sanction, prosecution/closure, departmental route	Trial verdict
Prosecution	Prosecution Wing/agency	Present case before Special Court	Judicial outcome
Trial	Special Court	Decide charges on evidence	Institutional policy

Caption: “Lokpal investigated and convicted” is an invalid compression of multiple legal stages.

4. Composition Under Section 3

[FACT] Section 3 provides a **Chairperson plus not more than eight Members**.

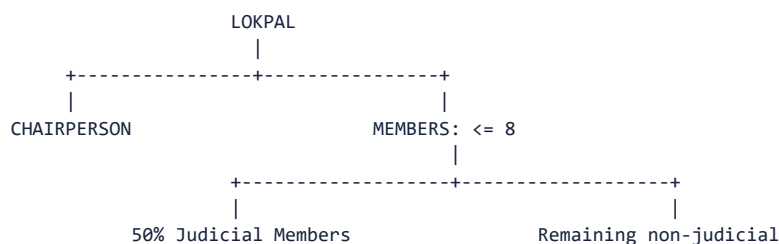
[FACT] **Fifty per cent of the Members shall be Judicial Members**. The statutory percentage applies to the Members, not to a combined denominator that automatically includes the Chairperson.

[FACT] **Not less than fifty per cent of the Members** must be from among persons belonging to the Scheduled Castes, Scheduled Tribes, Other Backward Classes, minorities and women.

[ANALYSIS] The first rule distributes professional background; the second establishes a social-representation floor. They are different requirements and can overlap in the same individual.

[LIMIT] “Maximum eight” is a ceiling, not a permanent guarantee that every seat is always filled. This package does not freeze the current occupancy of those seats.

Visual 08 — Composition at a Glance



REPRESENTATION FLOOR ACROSS MEMBERS:
not less than 50% from SC / ST / OBC / minorities / women

Caption: Judicial share and representation share are two distinct statutory calculations.

Visual 09 — Percentage Rules Without Confusion

Rule	Denominator or	Exact language	Wrong shortcut
Judicial membership	Members	50% shall be Judicial Members	"At least half of the whole Lokpal"
Social representation	Members	Not less than 50% from listed categories	"Exactly half including Chairperson"
Total size	Members	Not exceeding eight	"Always eight members"

Caption: UPSC close options often alter the denominator or replace a floor with an exact quota.

5. Eligibility, Expertise and Disqualifications

[FACT] A Chairperson may be a person who is or has been Chief Justice of India, is or has been a Supreme Court Judge, or is an eminent person satisfying the non-judicial expertise condition.

[FACT] A Judicial Member must be or have been a Supreme Court Judge or Chief Justice of a High Court.

[FACT] A non-judicial Member must be a person of impeccable integrity and outstanding ability with at least **twenty-five years** of special knowledge and expertise in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management.

[FACT] The Chairperson or a Member cannot be below **forty-five years** on assuming office.

[FACT] Section 3 also excludes an MP, State/UT legislator, Panchayat or Municipality member, a person convicted of an offence involving moral turpitude, and a person removed or dismissed from Union or State service.

[FACT] An appointee cannot hold another office of trust or profit, be affiliated with a political party, carry on business or practise a profession; existing conflicting engagements must be severed before entry into office.

Visual 10 — Eligibility Matrix

Office	Eligible background	Experience threshold
Chairperson — judicial route	Current/former CJI or current/former Supreme Court Judge	Office-based
Chairperson — eminent-person route	Integrity and outstanding ability in listed fields	At least 25 years
Judicial Member	Current/former Supreme Court Judge or current/former High Court Chief Justice	Office-based
Non-judicial Member	Listed anti-corruption/governance/finance/law/management expertise	At least 25 years
Every appointee	Must be at least 45 on assuming office	Age floor

Caption: The Chairperson is not confined to a serving or retired Chief Justice of India.

Visual 11 — Disqualification Screen

IS THE PERSON:
MP / State or UT legislator? ----- yes -> ineligible
Panchayat / Municipality member? ----- yes -> ineligible
convicted of moral-turpitude offence? ----- yes -> ineligible
removed/dismissed from Union/State service? -- yes -> ineligible
under 45 on assuming office? ----- yes -> ineligible
politically affiliated / in business /
profession / other trust or profit office? --- must sever before entry

Caption: Eligibility credentials do not cure an express statutory disqualification.

6. Appointment: Selection Committee and Search Committee

[FACT] The President appoints the Chairperson and Members on the recommendation of the Selection Committee.

[FACT] Section 4 names five positions:

1. Prime Minister — Chairperson;
2. Speaker of the Lok Sabha;
3. Leader of Opposition in the Lok Sabha;
4. Chief Justice of India or a Supreme Court Judge nominated by the CJI; and
5. one eminent jurist nominated by the President on the recommendation of the first four.

[CURRENT] The current India Code text checked for this package names the **Leader of Opposition**. It does not insert the leader of the single largest opposition party as a statutory substitute for Lokpal appointments.

[FACT] Section 4(2) instead states that no appointment is invalid merely because of a vacancy in the Selection Committee.

[FACT] The Selection Committee constitutes a Search Committee of **at least seven persons** of standing and relevant expertise. Not less than fifty per cent of its members must come from the same listed diversity categories. The Selection Committee may consider a person not recommended by the Search Committee.

[ANALYSIS] Search identifies a panel; Selection makes the recommendation; the President makes the appointment. Treating the Search Committee as the final appointing body reverses the statutory sequence.

Visual 12 — Appointment Chain

```
SEARCH COMMITTEE
at least 7 experts
prepares panel
|
v
SELECTION COMMITTEE
PM + Speaker + LoP + CJI/nominee + eminent jurist
recommends Chairperson/Members
|
v
PRESIDENT
appoints by warrant under hand and seal
```

Caption: Search, recommendation and appointment are three different legal acts.

Visual 13 — Selection Committee: Exact Seats

Seat	Status under section 4	Frequent confusion
Prime Minister	Chairperson	Not President
Lok Sabha Speaker	Member	Not Rajya Sabha Chairman
Lok Sabha Leader of Opposition	Member	Current text contains no largest-party substitute
CJI or CJI-nominated Supreme Court Judge	Member	Not any judge chosen by executive
Eminent jurist	President nominates on recommendation of first four	Not independently chosen by President

Caption: Appointment questions often swap Speaker/Chairman, LoP/opposition leader or CJI/nominee.

Visual 14 — Search vs Selection

Feature	Search Committee	Selection Committee
Size	At least seven	Five statutory positions
Main task	Prepare panel	Select and recommend
Diversity rule	Not less than 50% listed categories	No identical quota stated for committee seats
Expertise	Anti-corruption, administration, vigilance, policy, finance, law, management and useful fields	Institutional office-holders plus eminent jurist
Binding effect	Panel is not exclusive	May consider person outside Search panel

Caption: Search-panel eligibility is not final-selection entitlement.

Visual 15 — Vacancy Rule and Common Cause

NO RECOGNISED LoP / OTHER VACANCY
 |
 Section 4(2): appointment not invalid merely because of vacancy
 |
 Common Cause (2017):
 truncated Selection Committee can appoint eminent jurist,
 constitute Search Committee and recommend appointments
 |
 RESULT:
 Act remains workable; vacancy cannot suspend enforcement

Caption: The judicial solution was workability through the vacancy clause, not rewriting a substitute into section 4.

7. Tenure, Reappointment and Post-Tenure Restrictions

[FACT] Section 6 fixes the term at **five years from entering office or until age seventy, whichever is earlier**.

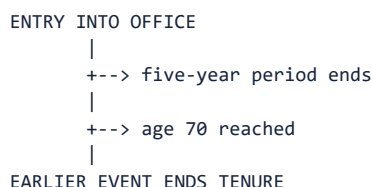
[FACT] The Chairperson or Member may resign to the President or be removed under section 37.

[FACT] On leaving office, the Chairperson and every Member are ineligible for reappointment as Chairperson or Member, diplomatic assignment, Union Territory administrator or another presidential-warrant assignment, and further office of profit under Union or State government.

[FACT] They cannot contest election as President, Vice-President, MP, State legislator, Municipality or Panchayat member for five years after relinquishing office.

[FACT] A Member may be appointed Chairperson if the aggregate tenure as Member and Chairperson does not exceed five years.

Visual 16 — Tenure Clock



EXCEPTIONAL CAREER MOVE:
Member -> Chairperson permitted
only if aggregate Lokpal tenure <= 5 years

Caption: "Five years" is subject to the age ceiling and aggregate-tenure rule.

Visual 17 — Post-Tenure Firewall

Restriction	Duration/form
Reappointment to Lokpal	Ineligible, subject to Member-to-Chair aggregate exception
Diplomatic/UT administrator/specified presidential appointment	Ineligible
Government office of profit	Ineligible
Election to named public offices	Five-year cooling-off period

Caption: Fixed tenure is paired with restrictions designed to reduce expectation of executive reward.

8. Removal and Suspension Under Section 37

[FACT] Lokpal cannot inquire into a complaint against its own Chairperson or Member.

[FACT] For removal on **misbehaviour**, the route is: a petition signed by at least **one hundred Members of Parliament**; Presidential reference to the Supreme Court; Supreme Court inquiry and report that removal is warranted; Presidential removal order.

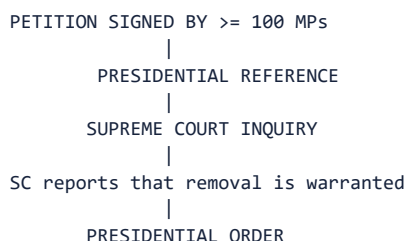
[FACT] Once a reference is made, the President may suspend the Chairperson or Member on the Supreme Court's recommendation or interim order until the final report is acted upon.

[FACT] The President may directly remove a Chairperson or Member who is adjudged insolvent, engages in paid employment outside official duties during the term, or is considered unfit by reason of infirmity of mind or body.

[FACT] Interest in a Union or State government contract, or participation in its profit/benefit beyond ordinary incorporated-company membership, is deemed misbehaviour.

[LIMIT] Do not import the removal procedures of CVC, NHRC or Election Commission. Section 37 has its own threshold, grounds and judicial-reference architecture.

Visual 18 — Misbehaviour Removal Route



PENDING REFERENCE:
suspension only on SC recommendation/interim order

Caption: The Supreme Court inquiry is central to the misbehaviour route.

Visual 19 — Direct Grounds vs Inquiry Ground

Route	Ground	Supreme Court inquiry?
Section 37(2)	Misbehaviour	Yes
Section 37(4)(a)	Insolvency	Not under subsection (2) route
Section 37(4)(b)	Paid outside employment during term	Not under subsection (2) route
Section 37(4)(c)	Mental or physical infirmity rendering person unfit	Not under subsection (2) route
Section 37(5)	Government-contract interest	Deemed misbehaviour; subsection (2) route

Caption: Not every removal ground uses the same procedure.

9. Jurisdiction: Persons and Entities Covered

[FACT] Section 14 covers current and former Prime Ministers, Union Ministers, Members of Parliament, Group A-D Union officials and specified persons in statutory, financed or controlled bodies.

[FACT] Former public servants remain covered for conduct during the period in which they held or served in the relevant capacity.

[FACT] Officers of entities established by an Act of Parliament, or wholly or partly financed or controlled by the Central Government, fall within clause (f).

[FACT] Clause (g) reaches officers of other societies, associations or trusts wholly or partly financed by Government where annual income exceeds the amount notified by the Central Government. Because that threshold can be notification-dependent, it is not frozen here.

[FACT] Clause (h) reaches officers of other societies, associations or trusts receiving foreign-source donations exceeding **ten lakh rupees in a year or a higher amount notified by the Central Government**.

[FACT] Section 14(3) can reach another person involved in abetting, bribe giving, bribe taking or conspiracy connected with a corruption allegation against a covered person, subject to State consent where the person serves State affairs.

[FACT] The definition of public servant excludes persons for whom jurisdiction or procedure lies under the Army, Air Force, Navy or Coast Guard Acts.

Visual 20 — Jurisdiction Concentric Map

```

CORE HIGH OFFICES
PM (guarded) | Union Ministers | MPs
|
UNION PUBLIC SERVICE
Groups A | B | C | D | former officials
|
PUBLICLY CREATED / FUNDED / CONTROLLED ENTITIES
boards | corporations | authorities | companies | societies | trusts
|
OTHER COVERED ENTITIES
notified government-finance threshold | specified foreign contribution
|
CONNECTED PRIVATE ACTORS
abetting | bribe giving/taking | conspiracy
  
```

Caption: Jurisdiction follows statutory category and allegation, not the public prominence of the person alone.

Visual 21 — Coverage Matrix

Category	Covered?	Qualification
Sitting/former Prime Minister	Yes	Special exclusions and procedure
Sitting/former Union Minister	Yes	Ordinary statutory procedure subject to Act
Sitting/former MP	Yes	Article 105(2) speech/vote exclusion
Group A-D Union official	Yes	CVC routing differs by category
Former Union official	Yes	Conduct must relate to period in covered capacity
State official	Not automatically	Consent provisions may apply
Armed-forces personnel governed by named service Acts	Excluded from Act's public-servant definition for that jurisdiction/procedure	Special legal systems
Any NGO merely because registered	No	Funding/control/foreign-contribution conditions matter

Caption: Registration alone is not the jurisdictional test for a private society or trust.

Visual 22 — Current/Formal Test

ALLEGED ACT DATE

|
Was the person then holding/serving in a section 14 capacity?

|
yes + complaint within limitation -> former status does not erase jurisdiction
no -> present fame or later office cannot create retrospective category coverage

Caption: The Act attaches the allegation to the period of covered public service.

10. Prime Minister: Included, but Specially Ring-Fenced

[FACT] Section 14(1)(a) includes a person who is or has been Prime Minister.

[FACT] Lokpal cannot inquire into a corruption allegation against the Prime Minister insofar as it relates to:

- international relations;
- external and internal security;
- public order;
- atomic energy; and
- space.

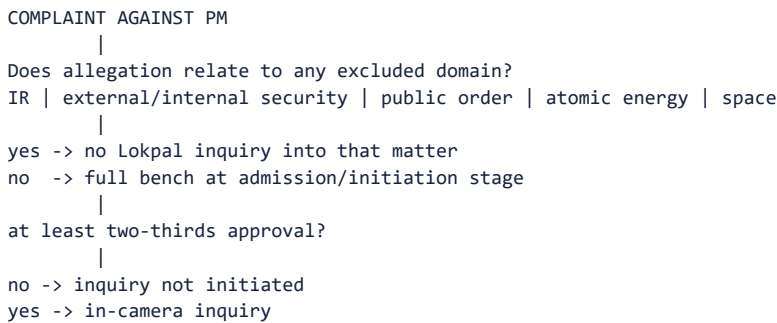
[FACT] Initiation requires a **full bench consisting of the Chairperson and all Members**, and at least **two-thirds of its Members** must approve.

[FACT] The inquiry must be held **in camera**. If Lokpal concludes that the complaint deserves dismissal, the inquiry records shall not be published or made available to anyone.

[FACT] The Complaint Rules, 2020 require a complaint against the Prime Minister to be decided by that full bench in the first instance at the admission stage.

[ANALYSIS] The model is neither total immunity nor ordinary parity. It combines substantive exclusions, collective decision-making, a supermajority, confidentiality and record consequences.

Visual 23 — Prime Minister Safeguard Screen



Caption: Subject exclusion and supermajority approval are cumulative safeguards.

Visual 24 — PM Record Consequences

Stage/outcome	Publicity rule
Inquiry itself	In camera
Complaint dismissed	Inquiry records not published or made available to anyone
Matter proceeds	Controlled by Act, Rules and applicable confidentiality orders

Caption: The special record-destruction/publication consequence applies to dismissal, not as a general formula for all Lokpal cases.

11. MPs, Article 105(2) and the Bribery Boundary

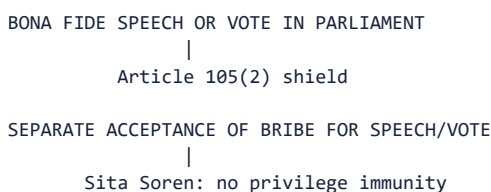
[FACT] Section 14(2) bars Lokpal inquiry into a corruption allegation against an MP in respect of anything said or a vote given in Parliament or a committee, where Article 105(2) applies.

[FACT] In **Sita Soren v Union of India (2024 INSC 161)**, a unanimous seven-judge Supreme Court bench overruled the relevant majority position in *P.V. Narasimha Rao*. It held that a legislator who accepts a bribe for a speech or vote receives no Article 105/194 immunity; bribery is complete on acceptance.

[ANALYSIS] The provisions can be harmonised through a functional boundary: bona fide speech and vote remain protected, but a separate criminal bargain to sell that function is not converted into protected legislative activity.

[LIMIT] *Sita Soren* did not abolish parliamentary freedom of speech or ordinary vote immunity. It removed the claimed shield for bribery.

Visual 25 — Article 105(2) Boundary



Caption: Privilege protects the legislative function, not its corrupt sale.

Visual 26 — Lokpal and Privilege Test

Question	If yes	If no
Is the allegation merely about protected speech/vote?	Section 14(2) exclusion applies	Continue
Is there an independent allegation of bribery/bargain?	<i>Sita Soren</i> denies privilege immunity	Ordinary jurisdiction test
Is the person otherwise covered by section 14?	Lokpal process may apply	No Lokpal jurisdiction
Is complaint timely and prescribed?	Proceed to scrutiny	Defect/limitation route

Caption: “MPs are outside Lokpal” and “privilege never matters” are both wrong.

12. State-Connected Persons and Consent

[FACT] Section 14 contains consent protections where a person connected with Union service or a Union-linked entity is working in connection with State affairs or a State-established/financed/controlled entity.

[FACT] Section 14(3) also requires State consent before action against a connected person serving in State affairs.

[ANALYSIS] These provisions recognise that Lokpal is a Union institution and cannot automatically convert every State-linked corruption allegation into central jurisdiction.

[LIMIT] This is distinct from DSPE Act section 6 consent for CBI territorial operation. An answer should identify which consent rule is being discussed.

Visual 27 — Two Consent Questions

QUESTION 1: DOES LOKPAL HAVE SECTION 14 JURISDICTION OVER A STATE-CONNECTED PERSON?
-> apply Lokpal Act consent provisos

QUESTION 2: CAN DSPE/CBI EXERCISE POLICE POWERS IN A STATE TERRITORY?
-> apply DSPE Act sections 5-6 / court route

NEVER MERGE THE TWO TESTS

Caption: Person-based Lokpal consent and territory-based DSPE consent solve different federal problems.

13. Complaint Entry: Form, Identity, Affidavit and Scrutiny

[FACT] The Lokpal (Complaint) Rules, 2020 require the prescribed form. Filing may be electronic, by post or in person.

[FACT] Where filed electronically, a hard copy must be submitted within fifteen days; the Rules also state that a complete electronic complaint should not be kept pending merely for that reason.

[FACT] A complaint ordinarily may be in English, but Lokpal may entertain a complaint in an Eighth Schedule language.

[FACT] Required annexures include identity proof, organisational registration/incorporation and authorisation where relevant, the specified affidavit, and a duly signed detailed statement of allegation.

[CURRENT] Lokpal Circular No. 01/2026, dated 24 July 2026, consolidates Registry procedure. It states that a complaint not in the prescribed form will not be entertained on merits until defects are removed; the Registry scrutinises form and relevant information, assigns diary/complaint numbers and places the matter for bench allocation.

[FACT] Rule 4 permits in-limine disposal where content is illegible, vague or ambiguous, trivial or frivolous, lacks an allegation against a public servant, is time-barred, or concerns a cause pending before another court, tribunal or authority.

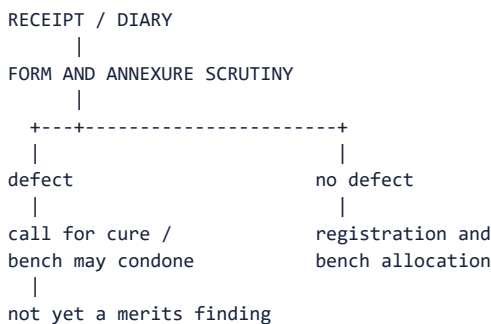
[LIMIT] A formal defect is not a finding that the allegation is false. Defect cure, maintainability, prima facie assessment and final adjudication are different.

Visual 28 — Complaint Entry Checklist

PRESCRIBED FORM
 +
 IDENTITY PROOF
 +
 AFFIDAVIT
 +
 SIGNED DETAILED ALLEGATION
 +
 ORGANISATIONAL AUTHORITY DOCUMENTS (if applicable)
 +
 FILING MODE REQUIREMENTS
 =
 READY FOR REGISTRY SCRUTINY

Caption: The Act does not create an anonymous-complaint channel.

Visual 29 — Scrutiny Funnel



Caption: Registry scrutiny filters filing compliance; the bench controls legal disposition.

Visual 30 — In-Limine Disposal Grounds

Ground under Rule 4	Why it matters	Qualification
Illegible	No workable allegation	Curable form issue may differ
Vague/ambiguous	No determinate case	Must not substitute speculation
Trivial/frivolous	Statutory filter	“Unproved” is not automatically frivolous
No allegation against public servant	Outside complaint definition	Connected-person rule may still require analysis
Beyond section 53	Seven-year bar	Date of alleged offence controls
Cause pending elsewhere	Avoid parallel process	Apply exact pendency facts

Caption: Screening protects process integrity but can also create access barriers if applied mechanically.

14. Preliminary Inquiry Is Not Investigation

[FACT] On receiving a complaint and deciding to proceed, Lokpal may order either:

- a **preliminary inquiry** by its Inquiry Wing or an agency, including DSPE, to ascertain whether a prima facie case exists; or
- an **investigation** by an agency, including DSPE, where a prima facie case exists.

[FACT] Before ordering investigation, Lokpal must call for the public servant’s explanation to determine whether a prima facie case exists. This does not interfere with necessary search and seizure.

[ANALYSIS] Preliminary inquiry is a threshold assessment. Investigation is the evidence-gathering criminal-process stage. Calling both “investigation” hides different safeguards and outputs.

Visual 31 — Inquiry vs Investigation

Dimension	Preliminary inquiry	Investigation
Purpose	Determine prima facie case	Collect evidence for criminal report
Actors	Inquiry Wing, CVC or agency	CBI/DSPE or other investigating agency
Comments/hearing	Comments from public servant and competent authority; hearing before decision	Explanation before direct investigation; comments again at post-report stage
Output	Investigate, departmental action, closure	Court report + Lokpal copy; prosecution/closure/departmental route
Legal character	Screening/inquiry	Criminal investigation

Caption: An allegation surviving preliminary inquiry is still not proof of guilt.

15. CVC Routing for Groups A-D

[FACT] If Lokpal decides to proceed through preliminary inquiry, section 20 requires reference of complaints or categories involving Groups A, B, C or D to the CVC by general or special order.

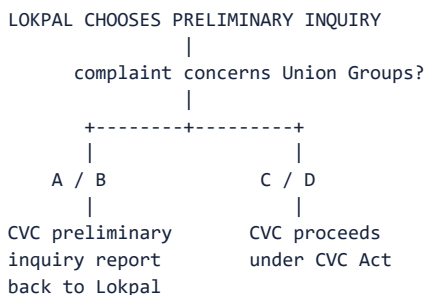
[FACT] For Groups A and B, the CVC conducts preliminary inquiry and submits its report to Lokpal.

[FACT] For Groups C and D, the CVC proceeds under the CVC Act, 2003.

[FACT] Section 25(2) requires the CVC to send statements at intervals directed by Lokpal about action on referred complaints; Lokpal may issue guidelines for effective and expeditious disposal.

[ANALYSIS] This is neither a simple hierarchy nor duplication. Lokpal remains the high-level complaint-routing institution, while CVC has category-specific preliminary-inquiry and vigilance functions.

Visual 32 — CVC Routing Tree



Caption: Group category changes where the report returns and which statutory route continues.

16. Timelines and Natural Justice

[FACT] During preliminary inquiry, the Inquiry Wing or agency collects material, seeks comments from the public servant and competent authority, and submits a report within **sixty days from receipt of the reference**.

[FACT] Every preliminary inquiry should ordinarily be completed within **ninety days**, extendable for recorded reasons by a further **ninety days** from receipt of the complaint.

[FACT] A bench of at least three Members considers the report, gives the public servant an opportunity of hearing and chooses investigation, departmental/other action, or closure with possible section 46 action.

[FACT] Investigation should be completed within **six months** from Lokpal's order. Lokpal may extend it by a further period not exceeding six months **at a time**, recording reasons.

[FACT] Section 21 protects a person other than the accused whose conduct is examined or reputation is likely to be prejudicially affected, by requiring a reasonable opportunity of hearing and defence evidence.

Visual 33 — Statutory Time Map

REFERENCE FOR PRELIMINARY INQUIRY
|
report target: 60 days from reference
|
ordinary preliminary-inquiry completion: 90 days
|
recorded-reason extension: further 90 days
|
INVESTIGATION ORDER
|
ordinary completion: 6 months
|
recorded-reason extension: <= 6 months at a time
|
SPECIAL COURT TRIAL
1 year target -> 3-month recorded extensions -> total <= 2 years

Caption: The 60-day report requirement, 90+90 inquiry framework and six-month investigation period are not interchangeable.

Visual 34 — Three-Member Bench Decision

Finding after preliminary inquiry	Possible action
Prima facie criminal case	Investigation by agency/DSPE
Service misconduct/other appropriate concern	Departmental or other action through competent authority
No prima facie case	Closure
False, frivolous or vexatious case meeting section 46 threshold	Proceed against complainant through lawful process

Caption: Closure and prosecution of the complainant are not automatic synonyms.

17. Investigation, Report, Sanction and Prosecution

[FACT] The investigating agency submits its statutory investigation report to the court having jurisdiction and forwards a copy to Lokpal.

[FACT] A bench of at least three Members considers the report and, after comments from the competent authority and public servant, may grant sanction to the Prosecution Wing or agency to file a charge-sheet, direct a closure report, or direct departmental/other action.

[FACT] Lokpal may then direct its Prosecution Wing or investigating agency to initiate prosecution in the Special Court.

[FACT] Section 23 gives Lokpal prosecution-sanction power for the section 20(7)(a) route, subject to the constitutional-office qualification in section 23(3).

[FACT] Where the investigation concerns the Prime Minister, Union Minister or MP and discloses a Prevention of Corruption Act offence, section 24 permits Lokpal to file a case in the Special Court and requires the report/findings to be sent to the competent authority.

[ANALYSIS] “Sanction” is procedural authorisation to prosecute; it is not a merits verdict. Likewise, a charge-sheet is an accusation supported by investigative material, not a conviction.


```

AGENCY INVESTIGATION REPORT
|
filed before jurisdictional court
+ copy forwarded to Lokpal
|
>= 3 MEMBER LOKPAL BENCH
+ comments of competent authority/public servant
|
+-----+-----+-----+
|               |               |               | |
| sanction +     | closure       | departmental | other       |
| charge-sheet   | report        | action        | appropriate|
|                |                |                | action     |
|                |                |                |            |
| Prosecution   | Wing / agency |                |            |
|                |                |                |            |
| Special Court  |                |                |            |

```

Visual 36 — Special Court Role

Question	Lokpal	Special Court
Prima facie routing	Yes	No
Prosecution sanction under Act	Yes	No
Charge framed/trial conducted	No	Yes
Attachment confirmed	Applies/seeks	Decides
Conviction/acquittal	No	Yes
Loss assessment after conviction	No	Yes

18. Inquiry Wing and Prosecution Wing: Mandate and Verified Status

[LIMIT] Formal constitution and a published organogram prove legal/organisational creation. They do not, by themselves, prove that every sanctioned post is filled, that the wings possess complete independent operational capacity, or any particular level of case output.

Visual 37 — Wings: Law vs Current Implementation

Wing	Statutory mandate	Official implementation evidence	Controlled conclusion
Inquiry Wing	Preliminary inquiry, section 11	Constitution entry dated 5 Sep 2024; revised organogram dated 13 Sep 2024	Formally constituted and structurally depicted
Prosecution Wing	File/prosecute cases when directed, section 12	Formal order 6 Jun 2025; Gazette notification 13 Jun 2025	Formally constituted and notified
Investigation function	Criminal investigation	Assigned to CBI/DSPE or other agency under section 20	Wings do not create a general Lokpal police force

Caption: “Created in the Act”, “formally constituted” and “fully staffed/effective” are three different propositions.

Visual 38 — Inquiry–Investigation–Prosecution Boundary

INQUIRY WING preliminary inquiry prima facie threshold section 11	INVESTIGATING AGENCY police/criminal investigation evidence + statutory report section 20	PROSECUTION WING files and conducts case before Special Court section 12
NO STAGE = FINAL GUILT		

Caption: Institutional labels must follow the statutory function actually performed.

19. Supervisory and Investigative-Process Powers

[FACT] Section 25 gives Lokpal superintendence and direction over DSPE in matters Lokpal refers for preliminary inquiry or investigation.

[FACT] Lokpal cannot use that power to require an agency to investigate or dispose of a case in a particular manner.

[FACT] A DSPE officer investigating a Lokpal-referred case cannot be transferred without Lokpal approval.

[FACT] DSPE may, with Lokpal’s consent, appoint a panel of advocates other than government advocates for referred cases.

[ANALYSIS] This creates operational insulation for referred cases, not general command over every CBI investigation.

Visual 39 — CBI/DSPE Guardrails

LOKPAL-REFERRED MATTER
superintendence + lawful directions
NO DICTATION OF PARTICULAR MANNER OR DISPOSAL
investigating officer transfer requires Lokpal approval
advocate panel requires Lokpal consent

Caption: Superintendence is real but bounded by investigative independence and case-specific jurisdiction.

Visual 40 — Power Matrix

Power	Lokpal position	Key limit
Direct DSPE in referred matter	Yes	Cannot dictate particular investigation/disposal
Transfer approval for referred-case investigator	Yes	Only Lokpal-referred case
Conduct general police investigation	No	Agency function
Authorise search/seizure	Yes	Through agency entrusted with investigation
Require information/documents	Yes	For inquiry/investigation under Act
Recommend suspension/transfer	Yes	Government ordinarily accepts; may record administrative reasons
Convict or sentence	No	Court function

Caption: The most defensible answer names both the power and its statutory boundary.

20. Search, Civil-Court Powers, Attachment and Confiscation

[FACT] Section 26 allows Lokpal, where it has reason to believe relevant documents are secreted, to authorise the investigating agency to search for and seize them.

[FACT] Section 27 gives the Inquiry Wing civil-court powers during preliminary inquiry for summoning, attendance, examination on oath, document discovery/production, affidavit evidence, public-record requisition and commissions.

[FACT] Proceedings before Lokpal are deemed judicial proceedings for the false-evidence provision referenced by the Act. This does not transform Lokpal into a criminal court.

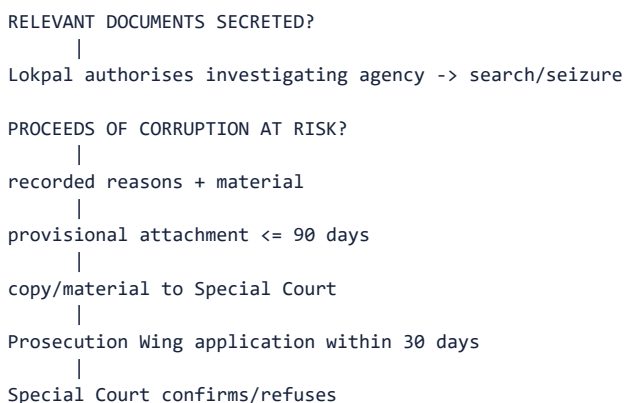
[FACT] Section 29 permits provisional attachment for up to **ninety days** where recorded reasons and material support belief about proceeds of corruption and risk of concealment/transfer. The order and material go to the Special Court.

[FACT] Under section 30, the Prosecution Wing must apply within **thirty days** for confirmation. Acquittal ordinarily leads to restoration; conviction permits confiscation of proceeds relatable to the offence.

[FACT] Section 31 separately permits Special Court confiscation in special circumstances on prima facie evidence until acquittal, with restoration/value plus statutory interest if the order is annulled or the public servant is acquitted.

[FACT] Section 32 permits Lokpal to recommend transfer or suspension where continuation threatens inquiry, evidence or witnesses. The Central Government ordinarily accepts, unless written administrative reasons make it infeasible.

Visual 41 — Search and Attachment Sequence



Caption: Search is agency-executed; attachment is court-controlled after the provisional stage.

Visual 42 — Civil Court, Criminal Court and Judicial Proceeding

Proposition	Correct?	Reason
Inquiry Wing has specified civil-court powers	Yes	Section 27
Lokpal proceedings are deemed judicial for false-evidence law	Yes	Section 27(2)
Lokpal is a civil court for all purposes	No	Powers are purpose-specific
Lokpal is a criminal court	No	Special Court adjudicates
Lokpal has a general contempt jurisdiction	No general power located in the Act	Do not infer from "judicial proceeding"

Caption: A deeming provision must not be expanded beyond its stated purpose.

21. Assets, Section 44 Amendment and Section 45 Presumption

[FACT] The original section 44 contained a more detailed declaration structure. The **Lokpal and Lokayuktas (Amendment) Act, 2016** substituted it retrospectively from commencement.

[FACT] Current section 44 states that every public servant shall declare assets and liabilities **in such form and manner as may be prescribed**.

[FACT] Section 45 provides a rebuttable presumption where a public servant wilfully or without justifiable reason fails to declare assets, or supplies misleading information and is found possessing undisclosed/misdescribed assets.

[CURRENT] DoPT's official 2016 memoranda state that the earlier 2014 asset-return rules became redundant after substitution and that fresh rules would be prescribed. In the official DoPT/Lokpal material located for this control check, no later fresh section 44 form-and-manner rules were located.

[LIMIT] The last sentence is a controlled search result, not a claim that no document could exist outside the official repositories checked. Do not use the original 2014 public-disclosure design as if it remains the current statutory text.

[LIMIT] **Lok Prahari v Union of India (2018)** concerned election-candidate/legislator disclosure, sources of income, voter information and a permanent monitoring mechanism. It did not judicially restore the original section 44 format.

Visual 43 — Section 44 Before and After 2016

Dimension	Original framework	Current statutory framework
Detail in Act	Extensive declaration/publication architecture	General duty
Operative wording	Specified assets/liabilities and related disclosure design	Form and manner to be prescribed
Rules status	2014 rules existed	DoPT stated old rules redundant after amendment
Safe exam statement	Historical design	Current section 44 + rule-status qualification

Caption: The amendment preserved a declaration duty but changed how its operative detail is supplied.

Visual 44 — Section 45 Logic

WILFUL / UNJUSTIFIABLE FAILURE TO DECLARE
OR
MISLEADING INFORMATION + UNDISCLOSED ASSETS FOUND
|
REBUTTABLE PRESUMPTION
assets belong to public servant and were acquired by corrupt means
|
public servant may prove otherwise

Caption: Section 45 is a rebuttable evidentiary presumption, not automatic conviction.

22. Seven-Year Limitation and False-Complaint Safeguards

[FACT] Section 53 bars Lokpal inquiry or investigation where the complaint is made after **seven years from the date of the alleged offence**.

[FACT] Section 46 punishes, on conviction, a false and frivolous or vexatious complaint with imprisonment up to one year and fine up to one lakh rupees. Cognizance and prosecution follow the section's special conditions.

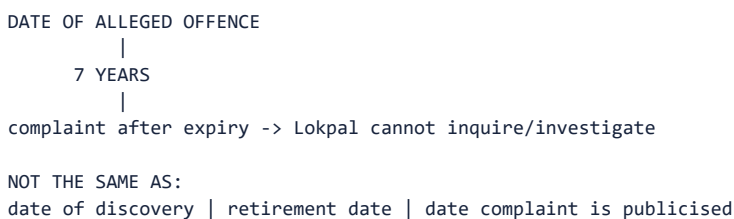
[FACT] A convicted complainant may also be ordered to pay compensation and legal expenses.

[FACT] Section 46 does not apply to complaints made in good faith; the Act defines good faith through due care, caution and responsibility or mistake of fact under the stated criminal-law provision.

[ANALYSIS] The false-complaint provision protects public servants against abuse, but can chill legitimate complainants if failure of proof is wrongly equated with bad faith.

[LIMIT] Closure, acquittal or an unproved allegation does not automatically establish a false, frivolous or vexatious complaint.

Visual 45 — Limitation Clock



Caption: Section 53 uses the alleged-offence date.

Visual 46 — False Complaint Test

Situation	Section 46 automatically applies?
Complaint dismissed for lack of evidence	No
Public servant acquitted	No
Filing defect	No
Complaint judicially found false and frivolous/vexatious through statutory process	Potentially
Good-faith complaint	Expressly protected

Caption: Anti-abuse law must not be converted into strict liability for an unsuccessful complainant.

23. Lokpal–CVC–CBI Relationship

[FACT] Lokpal is the complaint-routing and decision institution under its Act.

[FACT] CVC conducts or processes preliminary inquiries for referred Union official categories and reports/statements as the statutes require.

[FACT] CBI, through DSPE powers, may conduct preliminary inquiry or investigation when referred and submits the legal investigation report.

[FACT] Lokpal exercises referred-matter superintendence, controls transfer of the investigating officer in such cases and may grant prosecution sanction/direction.

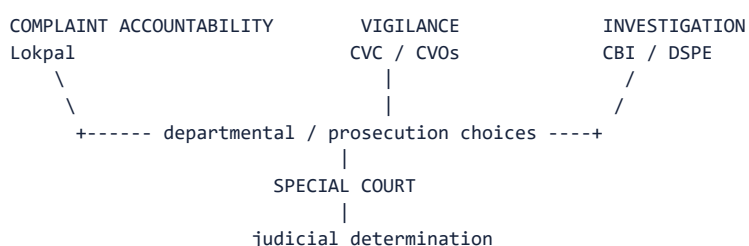
[ANALYSIS] The relationship is functional, not a single command pyramid. Each institution retains a different legal source, domain and output.

Visual 47 — Role Matrix

Function	Lokpal	CVC	CBI/DSPE	Special Court
Receive prescribed Lokpal complaint	Yes	Referred route	No primary Lokpal intake	No
Preliminary inquiry	Inquiry Wing/agency	Yes for referred categories	May be assigned	No
Criminal investigation	Directs agency	No general police role	Yes	No
Referred-case superintendence	Yes	Statutory role in own field	Subject to lawful oversight	Judicial review/trial
Prosecution sanction under Lokpal route	Yes	No	Uses sanction/process	No
Trial and guilt	No	No	No	Yes

Caption: Overlap in anti-corruption purpose does not erase institutional specialisation.

Visual 48 — Anti-Corruption Ecosystem



Caption: Coordination is necessary because no single body lawfully performs every function.

24. Lokayuktas and Federal Diversity

[FACT] Section 63 requires every State, if it had not already done so, to establish a Lokayukta by a law of the State Legislature within one year from commencement of the Union Act.

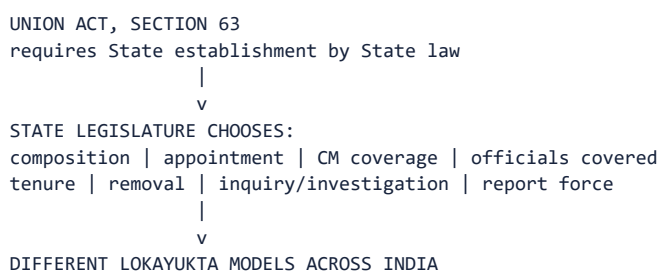
[FACT] Section 63 does not prescribe a uniform national composition, selection panel, jurisdiction, tenure, removal process, investigation wing, binding force or Upalokayukta model.

[FACT] Local Polity sources record Maharashtra as the first State to establish a Lokayukta in 1971, while noting earlier Odisha legislation with later enforcement.

[ANALYSIS] The Union Act creates a minimum institutional obligation, but State legislation determines design quality. Federal flexibility permits adaptation and also produces uneven accountability capacity.

[LIMIT] This package does not freeze a current State count or classify named States by today's vacancies/performance. "Strong" and "weak" below describe legal design features, not a permanent ranking.

Visual 49 — Section 63 Federal Model



Caption: The national law mandates establishment, not uniform institutional design.

Visual 50 — Strong vs Weak Design Archetypes

Design axis	Stronger statutory design	Weaker statutory design
Jurisdiction	Broad high-office and official coverage with narrow exclusions	Wide exclusions
Appointment	Multi-institutional, transparent panel	Executive-dominant process
Investigation	Dedicated/insulated capacity	Dependence without safeguards
Recommendations	Reasoned response and follow-up duties	Easily ignored advice
Tenure/removal	Fixed tenure and protected removal	Easy executive displacement
Reporting	Timely legislative/public reporting	Opaque disposal
Resources	Charged/protected or rule-based capacity	Ad hoc staffing

Caption: Federal comparison should evaluate statutory features, not rely on a changing vacancy list.

Visual 51 — Lokpal vs Lokayukta

Head	Lokpal	Lokayukta
Level	Union	State
Governing law	2013 parliamentary Act	Relevant State Act
Uniform composition	Yes under section 3	No national uniformity
PM/Union officials	Lokpal jurisdiction	Not State Lokayukta core
CM/State officials	Not automatically Lokpal's domain	Depends on State law
CVC/CBI routing	Express Union statutory links	State-specific machinery

Caption: Never transplant Lokpal's composition or five-member Selection Committee into every State statute.

25. Supreme Court and Current-Law Controls

25.1 Common Cause v Union of India (2017)

[FACT] The Supreme Court held the Act “eminently workable” and rejected the claim that its enforcement had to await proposed amendments.

[FACT] It read section 4(2) to permit a truncated Selection Committee, in the absence of a recognised LoP, to appoint the eminent jurist, constitute a Search Committee and recommend appointments.

[ANALYSIS] The case protects statutory implementation against political or institutional vacancy.

[LIMIT] It did not amend section 4 to create a largest-opposition-party substitute.

25.2 Lok Prahari v Union of India (2018)

[FACT] The Court directed amendment of election Form 26/rules to require candidates and associates to declare sources of income, and required a permanent mechanism to monitor disproportionate asset growth of legislators and associates.

[FACT] It treated non-disclosure of assets and sources of income as undue influence/corrupt practice in the election-law context.

[LIMIT] The holding is about electoral disclosure and democratic information. It must not be cited as if the Court restored the pre-2016 section 44 Lokpal return format.

25.3 Sita Soren v Union of India (2024)

[FACT] The seven-judge bench held that legislative privilege does not immunise bribery connected with a speech or vote.

[ANALYSIS] This narrows the practical space of the section 14(2) exclusion without erasing protected legislative speech and vote.

25.4 High Court Judge Jurisdiction Order (2025)

[CURRENT] On 20 February 2025, the Supreme Court stayed the Lokpal order dated 27 January 2025 in Complaint No. 05/2025 concerning asserted jurisdiction over a High Court judge, issued notice and imposed confidentiality directions.

[LIMIT] A stay is not a final holding on jurisdiction. The Lokpal order cannot be presented as settled expansion of jurisdiction, and the Supreme Court’s interim order cannot be presented as a final exclusion ruling.

[CURRENT] Lokpal Circular No. 01/2026 records the institution’s view, based on cited orders, that sitting Supreme Court judges are outside section 14 because the Supreme Court is constitutionally established rather than established by an Act of Parliament.

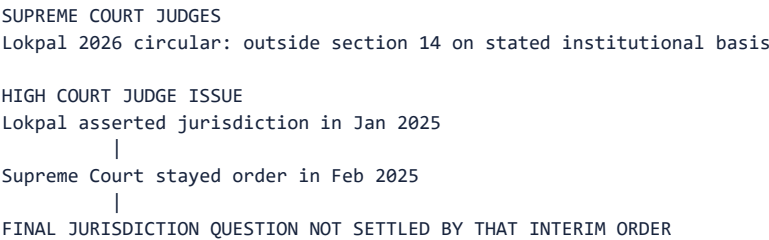
[LIMIT] An institutional circular does not predetermine the Supreme Court’s final resolution of the distinct High Court judge issue.

Visual 52 — Case-Control Timeline

Year	Case/order	Exact use
2017	Common Cause	Act workable; LoP vacancy not a legal blockade
2018	Lok Prahari	Electoral asset/source disclosure and monitoring
2024	Sita Soren	No legislative-privilege immunity for bribery
2025	SC stay of Lokpal HC-judge order	Jurisdiction issue remains unresolved
2026	Lokpal Circular 01/2026	Current Registry/jurisdiction procedural position, subject to superior law

Caption: Each authority has a different holding; none is a generic “Lokpal powers” precedent.

Visual 53 — Judiciary Status Control



Caption: Institution-level position, stayed order and final judicial law must be labelled separately.

26. Independence and Accountability Assessment

[FACT] Independence-supporting features include multi-institutional selection, fixed tenure, protected removal, post-tenure restrictions, expenditure charged on the Consolidated Fund of India, diverse membership, own statutory wings and referred-case control over DSPE transfers.

[ANALYSIS] Constraints include an executive-heavy Selection Committee, no general suo motu complaint power, prescribed-form barriers, reliance on external investigation, coordination delays, confidentiality tensions, the seven-year bar, uncertain asset-rule implementation and uneven State models.

[ANALYSIS] Transparency is also dual-edged. Public status information and annual reports support accountability, while complainant/public-servant confidentiality and PM in-camera rules protect fairness. Over-secrecy can weaken

legitimacy; over-disclosure can prejudice inquiry.

[LIMIT] Structural vulnerability does not prove partisan misuse in a named case. Critique design with evidence, not insinuation.

Visual 54 — Independence Scorecard

Dimension	Safeguard	Residual risk
Appointment	Multiple constitutional/institutional actors	PM-led committee; vacancy politics
Tenure	Five years/70; protected removal	Delayed vacancies can reduce capacity
Finance	Charged on Consolidated Fund	Staffing/administrative dependence may remain
Inquiry	Own Inquiry Wing	Preliminary inquiry is not full police investigation
Investigation	DSPE transfer approval; superintendence	External-agency dependence
Prosecution	Own Prosecution Wing	Formal constitution does not prove full staffing
Transparency	Website status/annual reporting	Confidentiality and delayed reporting tensions
Federal reach	State duty to create Lokayukta	Non-uniform State design

Caption: Institutional independence is a bundle of safeguards, not a binary label.

Visual 55 — Accountability Without Merger

INDEPENDENCE FROM IMPROPER EXECUTIVE PRESSURE
 +
 ANSWERABILITY THROUGH REASONS, REPORTS AND COURTS
 +
 DUE PROCESS FOR PUBLIC SERVANT AND COMPLAINANT
 +
 FEDERAL RESPECT
 =
 CREDIBLE ANTI-CORRUPTION OMBUDSMAN

Caption: Independence without accountability risks arbitrariness; accountability without independence risks capture.

27. Critiques, Replies and Reform Proposals

27.1 Critique–Reply Matrix

Critique	Evidence	Reply	Qualification
“No teeth”	No general suo motu complaint route; agency dependence	Sanction, supervision, attachment and prosecution powers are real	Effectiveness depends on capacity and lawful use
“Executive capture”	PM chairs Selection Committee	Speaker, LoP, CJI/nominee and jurist diversify it	Executive remains institutionally influential
“Too secret”	PM inquiry in camera; identity protection	Confidentiality protects fairness and security	Reasoned aggregate reporting still needed
“Duplicative”	Lokpal, CVC and CBI overlap	Functions differ by stage	Poor coordination can create delay
“Uniform national system”	Section 63 duty	State law permits federal tailoring	Baseline quality varies
“False-complaint chilling”	Section 46 penalties	Good-faith protection exists	Failure of proof must not be treated as bad faith

Visual 56 — Reform Map

PROBLEM	PROPOSAL
form barriers	-> assisted multilingual filing and cure process
agency dependence	-> stable multidisciplinary staffing + time audits
appointment delay	-> public calendar and reasoned vacancy management
opacity	-> anonymised stage-wise reasons and annual reporting
State variation	-> model minimum standards, preserving State law
asset-rule uncertainty	-> notify clear current section 44 rules
false-complaint chilling	-> strict good-faith screen before prosecution
overlap	-> written Lokpal-CVC-CBI routing protocol

Caption: These are reform proposals, not existing legal powers.

[ANALYSIS] A model State Lokayukta law could propose minimum jurisdiction, appointment diversity, tenure protection, investigation safeguards, response deadlines and reporting standards while leaving States room to legislate.

[ANALYSIS] Any proposal for suo motu power should include a recorded-reasons threshold, conflict/recusal rules, natural justice and judicial review. More power without procedure can politicise the institution it seeks to strengthen.

[ANALYSIS] Publishing anonymised reasons for closure and aggregate stage-wise data could improve legitimacy without freezing live complaint counts or compromising protected identities.

28. UPSC Answer Architecture

Visual 57 — 10/15/20-Mark Spine

Marks	Structure	Evidence load
10	Definition/status -> 2-3 design features -> one limitation -> verdict	Act + 2 sections/case points
15	Evolution -> design -> jurisdiction/process -> critique/reply -> reforms	4-6 named legal anchors
20	Thesis -> full architecture -> PM/privilege/federalism -> institutions -> cases -> balanced reform	6-8 anchors + diagram

Caption: Marks should scale dimensions and evidence, not merely paragraph length.

Visual 58 — Directive Decoder

Directive	What examiner expects	Lokpal example
Explain	Mechanism and reasons	How complaint becomes prosecution
Examine	Test proposition using evidence	Whether Lokpal is independent
Analyse	Break into causal/institutional parts	Lokpal-CVC-CBI relationship
Critically examine	Strengths, weaknesses and reasoned verdict	“Ombudsman without teeth”
Discuss	Multi-dimensional balanced treatment	Uniform Lokayukta model

Caption: A critique without statutory mechanism becomes opinion; a description without evaluation misses “critically”.

Visual 59 — Prelims Close-Option Traps

Trap	Correct control
Constitutional body	Statutory body
Chair must only be CJI	CJI/SC Judge/eminent qualified person
50% of total institution judicial	50% of Members judicial
Exactly eight Members	Not exceeding eight
PM fully immune	Included with exclusions and full-bench supermajority
MPs wholly immune	Protected speech/vote; bribery not immunised after <i>Sita Soren</i>
Lokpal directly investigates all cases	Investigation by assigned agency
CVC is subordinate office of Lokpal	Statutory functional referral relationship
Every State has same Lokayukta	State statutes vary
Failed complaint means false complaint	Section 46 threshold + good-faith shield

Caption: Most objective errors arise from replacing a qualified rule with an absolute proposition.

29. Current-Control and Source Ledger

Visual 60 — Claim-Risk Ledger

Claim family	Source used	Current control
Composition, appointment, jurisdiction, procedure, powers	Current India Code PDF	Checked 19 Aug 2026
Complaint form and initial filters	Lokpal (Complaint) Rules, 2020 Gazette	Official
Registry procedure	Lokpal Circular No. 01/2026, 24 Jul 2026	Official/current
Inquiry Wing	Official Lokpal circular register + organogram	Constitution dated 5 Sep 2024
Prosecution Wing	Official order/Gazette	Order 6 Jun; notification 13 Jun 2025
Asset declarations	2016 Amendment + DoPT OMs	No later fresh rule located in checked official repository
LoP vacancy	<i>Common Cause</i> official judgment	Exact holding used
Legislative bribery	<i>Sita Soren</i> official judgment	Exact privilege boundary used
HC judge issue	SC order, 20 Feb 2025	Stay/interim status only
PYQ	Official 2025 Set A paper and official Set A key	Directly checked locally

Caption: Current status is strongest where the proposition is tied to a named first-party instrument.

Official and Local Sources Consulted

- [FACT] India Code, **Lokpal and Lokayuktas Act, 2013**, current official consolidated PDF checked on 19 August 2026.
- [FACT] Gazette of India, **Lokpal (Complaint) Rules, 2020**, G.S.R. 148(E), 2 March 2020.
- [CURRENT] Lokpal of India, **Circular No. 01/2026**, 24 July 2026, procedure for complaints.
- [CURRENT] Lokpal official circulars/notifications API: Inquiry Wing entry dated 5 September 2024; Prosecution Wing order dated 6 June 2025 and Gazette notification dated 13 June 2025.
- [CURRENT] Lokpal official **Organizational Structure**, revised by Full Bench on 13 September 2024.
- [FACT] DoPT, Lokpal and Lokayuktas (Amendment) Act, 2016 and official asset-declaration memoranda.
- [FACT] Supreme Court, **Common Cause v Union of India***, W.P.(C) 245/2014, judgment dated 27 April 2017.
- [FACT] Supreme Court, **Lok Prahari v Union of India***, W.P.(C) 784/2015, judgment dated 16 February 2018.
- [FACT] Supreme Court, **Sita Soren v Union of India***, 2024 INSC 161, judgment dated 4 March 2024.
- [CURRENT] Supreme Court order dated 20 February 2025 staying the Lokpal's 27 January 2025 High Court judge order.
- [FACT] Local sources: basic/Lokpal-and-Lokayuktas.md, advanced/38_Lokpal-and-Lokayuktas.md, Polity 37 CVC-CBI package, Parliament package and OCR-searchable M. Laxmikanth Polity PDFs.
- [FACT] Local PYQ routing/audit ledgers; official UPSC 2025 GS-I Set A paper; official UPSC 2025 GS-I Set A answer key.

Current-Law Limits

- [LIMIT] No current Chairperson/Member names are frozen.
- [LIMIT] No complaint, disposal, prosecution or conviction totals are frozen.
- [LIMIT] No State-by-State vacancy or establishment count is frozen.
- [LIMIT] Formal wing constitution is not equated with full staffing or measured effectiveness.
- [LIMIT] The High Court judge jurisdiction question is described through the 2025 stay, not as finally decided.
- [LIMIT] The current section 44 text is not replaced by the original public-disclosure design.
- [LIMIT] Notification-dependent clause (g) finance threshold is not frozen.

PYQ, Practice and Solved Workbook

A. PYQ Routing Audit

[FACT] All local Prelims and Mains routing ledgers/audit files were searched for “Lokpal”, “Lokayukta” and “ombudsman”. One direct routed question was found: **2025 Prelims GS-I, Set A, Question 98**. No direct verified Mains PYQ was routed to this owner.

[LIMIT] The absence of a direct routed Mains PYQ does not mean the topic is unimportant for GS-II; it means original Mains practice below must not be mislabeled as UPSC PYQs.

Visual 61 — Verified PYQ Coverage

Year/paper	Question	Routing status	Key treatment
2025 Prelims GS-I Set A	Q98 — Lokpal jurisdiction/composition	Direct verified routed PYQ	Official Set-A key checked locally
Mains	No direct verified routed Lokpal/Lokayukta question found	None	No invented PYQ

Caption: The workbook reproduces the verified objective demand and labels every descriptive question as original.

B. Verified Prelims PYQ — 2025 GS-I Set A Q98

Consider the following statements about Lokpal: I. The power of Lokpal applies to public servants of India, but not to the Indian public servants posted outside India. II. The Chairperson or a Member shall not be a Member of the Parliament or a Member of the Legislature of any State or Union Territory, and only the Chief Justice of India, whether incumbent or retired, has to be its Chairperson. III. The Chairperson or a Member shall not be a person of less than forty-five years of age on the date of assuming office as the Chairperson or Member, as the case may be. IV. Lokpal cannot inquire into the allegations of corruption against a sitting Prime Minister of India. Which of the statements given above is/are correct? (a) III only (b) II and III (c) I and IV (d) None of the above statements is correct

Official Set-A key: A — III only.

[FACT] This letter is not inferred from the routing ledger. The ledger records that the answer was omitted there; the official local **Ans-2025-GS1.pdf** was directly checked and records **Q98 = A** for Series A.

Visual 62 — Statement Audit

Statement	Verdict	Named evidence
I	False	Section 1(3): Act applies to public servants in and outside India
II	False	Section 3: Chair may be CJI/SC Judge/eminant qualified person; Member/legislator disqualification is only part of statement
III	True	Section 3(4)(iii): minimum age 45
IV	False	Section 14 includes PM with exclusions and special procedure

Caption: A compound statement is false if any component is false.

Visual 63 — PYQ Elimination Route

I: "not outside India" -> contradicts section 1(3) -> eliminate C
II: "only CJI Chair" -> contradicts section 3 -> eliminate B
IV: "PM cannot be inquired" -> contradicts section 14 -> eliminate C/D logic
III alone survives -> option A

Caption: The question tests exact statutory qualifiers rather than general awareness.

C. Original MCQs — 36 Questions

MCQ 1

Which statement best describes the Lokpal?

A. It is a statutory anti-corruption ombudsman whose powers and limits arise from the 2013 Act. B. It is a constitutional court for corruption offences. C. It is the investigative division of the CVC. D. It is an executive body created only by a government resolution.

Answer: A.

Explanation: [FACT] The Lokpal is established by the Lokpal and Lokayuktas Act, 2013. It routes inquiries/investigations and exercises defined process powers, but a Special Court determines guilt.

MCQ 2

The Lokpal consists of:

A. A Chairperson and exactly eight Members. B. A Chairperson and not more than eight Members. C. A Chairperson, eight Members and the CVC as an ex officio Member. D. A Chairperson and not more than ten Members.

Answer: B.

Explanation: [FACT] Section 3 sets a ceiling of eight Members. "Not exceeding" must not be converted into a permanently filled exact number.

MCQ 3

Which composition statement is correct?

A. Half of the whole institution, including the Chairperson, must be judicial. B. At least half of the Members must be serving judges. C. Fifty per cent of the Members shall be Judicial Members, and not less than fifty per cent of Members must satisfy the listed representation rule. D. The representation rule applies only to non-judicial Members.

Answer: C.

Explanation: [FACT] Both calculations use "Members" as the denominator. Judicial Members can be former office-holders; the social-representation rule is not restricted to non-judicial seats.

MCQ 4

Who may be appointed Chairperson under section 3?

A. Only a serving Chief Justice of India. B. Only a former Chief Justice of India. C. Only a Supreme Court Judge. D. A current/former CJI, current/former Supreme Court Judge, or an eminent person satisfying the statutory expertise condition.

Answer: D.

Explanation: [FACT] The Chairperson has both judicial and eminent-person routes. The eminent-person route imports the non-judicial integrity, ability, expertise and experience requirements.

MCQ 5

A non-judicial Member must ordinarily possess:

A. At least twenty-five years of special knowledge and expertise in the listed fields. B. Ten years of judicial office. C. Twenty years as an MP. D. Thirty years in any occupation.

Answer: A.

Explanation: [FACT] Section 3 specifies twenty-five years and named fields including anti-corruption policy, administration, vigilance, finance, law and management.

MCQ 6

Which person is not expressly disqualified merely by the stated fact?

A. A sitting MP. B. A retired civil servant aged 60 who meets all eligibility conditions. C. A sitting Municipality member. D. A person removed from State service.

Answer: B.

Explanation: [FACT] Retirement from public service is not a disqualification. Sitting legislative/local-body office, removal/dismissal and the other listed grounds are.

MCQ 7

The Selection Committee for Lokpal appointments includes:

A. President, Prime Minister, CJI, CVC and Attorney General. B. Prime Minister, Rajya Sabha Chairman, LoP, CJI and CVC. C. Prime Minister, Lok Sabha Speaker, Lok Sabha LoP, CJI/nominee and an eminent jurist. D. Prime Minister, Home Minister, LoP, CJI and Cabinet Secretary.

Answer: C.

Explanation: [FACT] Section 4 names these five positions. The eminent jurist is nominated by the President on recommendation of the first four.

MCQ 8

The eminent jurist on the Selection Committee is:

A. Elected by Parliament. B. Selected by the Search Committee. C. Nominated by the CJI alone. D. Nominated by the President on recommendation of the other four Selection Committee members.

Answer: D.

Explanation: [FACT] This exact nomination route prevents the error that the President has an unguided independent choice.

MCQ 9

Which statement about the Search Committee is correct?

A. It has at least seven persons, a statutory diversity floor and prepares a panel, but its panel is not exclusive. B. It consists of exactly five constitutional office-holders. C. It makes the final presidential appointment. D. It can consider only serving judges.

Answer: A.

Explanation: [FACT] Section 4(3) provides at least seven experts and allows the Selection Committee to consider persons outside the Search Committee's recommendations.

MCQ 10

Under current section 4 and *Common Cause*:

A. Absence of a recognised LoP automatically substitutes the Home Minister. B. A vacancy does not by itself invalidate appointment, and a truncated committee may proceed. C. Every appointment made without LoP is void. D. The Search Committee becomes the appointing authority.

Answer: B.

Explanation: [FACT] Section 4(2) is the vacancy-validity rule. *Common Cause* held the Act workable; it did not enact a new substitute seat.

MCQ 11

The ordinary tenure rule is:

A. Six years or age 65, whichever earlier. B. Five years without age ceiling. C. Five years or age 70, whichever earlier. D. Four years or age 70, whichever earlier.

Answer: C.

Explanation: [FACT] Section 6 uses five years from entry or age seventy, whichever occurs first.

MCQ 12

Which post-tenure proposition is correct?

A. Every Member may be reappointed for another full five-year term. B. The Chairperson may immediately contest for Parliament. C. A former Member may accept any Union office of profit. D. A Member may become Chairperson only if aggregate Lokpal tenure does not exceed five years.

Answer: D.

Explanation: [FACT] Section 8 creates broad ineligibilities and one limited Member-to-Chairperson exception with an aggregate cap.

MCQ 13

Removal for misbehaviour ordinarily begins with:

A. A petition signed by at least one hundred MPs followed by Presidential reference to the Supreme Court. B. A Cabinet resolution. C. A Lokpal internal inquiry. D. A simple-majority Lok Sabha motion.

Answer: A.

Explanation: [FACT] Section 37 supplies its own threshold and Supreme Court inquiry route. Lokpal cannot inquire into its own Chairperson/Member.

MCQ 14

Which is a direct presidential removal ground under section 37(4)?

A. Policy disagreement with the Government. B. Being adjudged insolvent. C. Dissenting from another Member. D. Receiving an adverse media report.

Answer: B.

Explanation: [FACT] Insolvency, paid outside employment during tenure and infirmity rendering the person unfit are listed direct grounds.

MCQ 15

A complaint concerning the Prime Minister can proceed only if, among other conditions:

A. The CVC unanimously approves. B. Parliament passes a resolution. C. A full Lokpal bench considers initiation and at least two-thirds of its Members approve. D. The CJI conducts the preliminary inquiry.

Answer: C.

Explanation: [FACT] Section 14 creates a full-bench supermajority screen in addition to excluded subject domains and in-camera procedure.

MCQ 16

If a PM complaint is dismissed after the special inquiry:

A. It must be tabled in Parliament. B. It must be published after thirty days. C. Only the complainant may publish it. D. The inquiry records shall not be published or made available to anyone.

Answer: D.

Explanation: [FACT] This is the specific consequence in the second proviso to section 14(1)(a).

MCQ 17

Which proposition correctly reconciles section 14(2) with *Sita Soren*?

A. Bona fide parliamentary speech/vote remains protected, but bribery for it is not immunised. B. Every parliamentary speech may be investigated as corruption. C. MPs are completely outside Lokpal jurisdiction. D. Article 105(2) was repealed judicially.

Answer: A.

Explanation: [FACT] The 2024 judgment removed bribery immunity while preserving privilege's functional protection.

MCQ 18

Where Lokpal chooses preliminary inquiry for Groups A-D Union officials:

A. Every category is sent directly to the Special Court. B. CVC reports on Groups A/B to Lokpal and proceeds under the CVC Act for Groups C/D. C. CBI decides whether Lokpal has jurisdiction. D. Departments conduct the final criminal trial.

Answer: B.

Explanation: [FACT] The two provisos to section 20(1) create category-specific CVC routing.

MCQ 19

Section 14(1)(h) covers specified officers of certain entities receiving:

A. Any domestic donation. B. Any government grant, however small, without further condition. C. Foreign-source donations exceeding ten lakh rupees in a year or a higher notified amount. D. Only United Nations grants.

Answer: C.

Explanation: [FACT] The statutory threshold is ten lakh rupees or a higher notified amount. Clause (g)'s government-finance threshold is separately notification-dependent.

MCQ 20

Former public servants:

A. Are automatically immune after retirement. B. Are covered only if re-employed. C. Are covered for every private act in their lifetime. D. May remain covered for alleged conduct during the period they served in the relevant statutory capacity.

Answer: D.

Explanation: [FACT] Section 14 repeatedly uses "is or has been", while its explanation ties the complaint to the covered period.

MCQ 21

Which is required by the Complaint Rules, 2020?

A. Prescribed form, identity proof, affidavit and signed detailed allegation. B. Anonymous oral information alone. C. Prior permission of the accused public servant. D. Filing only through a lawyer.

Answer: A.

Explanation: [FACT] The Rules prescribe filing form/mode and required annexures. They do not create an anonymous channel.

MCQ 22

The best distinction between preliminary inquiry and investigation is:

A. Both are final trials. B. Preliminary inquiry tests prima facie basis; investigation gathers evidence for the criminal report. C. Preliminary inquiry is always by a court. D. Investigation is only departmental.

Answer: B.

Explanation: [FACT] Sections 2 and 20 assign different purposes, procedures and outputs to the two stages.

MCQ 23

Which timeline combination is correct?

A. Preliminary inquiry always ends in 30 days; investigation in 90 days. B. Preliminary report in 90 days; investigation cannot be extended. C. Report within 60 days of reference; ordinary inquiry 90 days with further 90 days for recorded reasons. D. Every inquiry and trial must finish within six months.

Answer: C.

Explanation: [FACT] Section 20 contains both a 60-day report rule and the 90+90 overall preliminary-inquiry framework.

MCQ 24

After considering a preliminary inquiry report, a three-Member bench may:

A. Convict the public servant. B. Dissolve the department. C. Amend the Prevention of Corruption Act. D. Order investigation, departmental/other action, or closure under the statutory conditions.

Answer: D.

Explanation: [FACT] Section 20(3) lists these options. Conviction is not among them.

MCQ 25

An investigation directed by Lokpal should ordinarily be completed within:

A. Six months, with recorded-reason extensions not exceeding six months at a time. B. Thirty days without extension. C. One year without extension. D. Seven years.

Answer: A.

Explanation: [FACT] Section 20(5) establishes the six-month period and extension architecture.

MCQ 26

Lokpal's superintendence over DSPE:

A. Covers every CBI case in India. B. Applies to matters Lokpal refers, but cannot dictate investigation/disposal in a particular manner. C. Converts Lokpal into the CBI Director. D. Eliminates all federal consent requirements.

Answer: B.

Explanation: [FACT] Section 25 is referred-matter specific and contains an express anti-dictation proviso.

MCQ 27

An officer of DSPE investigating a Lokpal-referred case:

A. May be transferred only by Parliament. B. Can never be transferred. C. Cannot be transferred without Lokpal approval. D. Is appointed by the complainant.

Answer: C.

Explanation: [FACT] Section 25(3) creates a case-specific transfer safeguard.

MCQ 28

Under section 26:

A. Lokpal personally conducts every physical search. B. CVC issues all search warrants. C. Search is barred before investigation. D. Lokpal may authorise the agency entrusted with investigation to search for and seize relevant secreted documents.

Answer: D.

Explanation: [FACT] The power is authorisation through the investigating agency, not a general Lokpal police force.

MCQ 29

The Inquiry Wing's civil-court powers include:

A. Summoning persons and requiring document production for preliminary inquiry. B. Awarding criminal sentences. C. Declaring statutes unconstitutional. D. Exercising a general contempt jurisdiction.

Answer: A.

Explanation: [FACT] Section 27 enumerates specified civil-procedure powers. It does not confer final criminal adjudication or general contempt power.

MCQ 30

Provisional attachment under section 29 may ordinarily last:

A. Thirty days with no court role. B. Up to ninety days, followed by Special Court control. C. Indefinitely at Lokpal's discretion. D. Until retirement of the public servant.

Answer: B.

Explanation: [FACT] Recorded reasons and material are required; the order/material must be sent to the Special Court.

MCQ 31

Lokpal's prosecution-sanction power:

A. Is identical to a conviction. B. Applies without any statutory conditions to every constitutional office-holder. C. Authorises prosecution under the section 20 route, subject to section 23's qualifications. D. Replaces the Special Court.

Answer: C.

Explanation: [FACT] Sanction is a procedural gateway. Section 23(3) preserves the qualification for constitutional offices with specified removal procedure.

MCQ 32

The Special Court is expected to complete trial:

A. Within three months in every case. B. Within six months with no extension. C. Whenever Lokpal directs, without statutory target. D. Within one year, with recorded three-month extensions but total not exceeding two years.

Answer: D.

Explanation: [FACT] Section 35 sets the one-year target and the structured extension ceiling.

MCQ 33

Section 53 bars a complaint made:

A. More than seven years after the date of the alleged offence. B. More than seven years after retirement only. C. More than three years after discovery. D. After any departmental inquiry begins.

Answer: A.

Explanation: [FACT] The alleged-offence date is the statutory anchor.

MCQ 34

After the 2016 amendment, section 44:

A. Abolishes all asset declarations. B. Requires declaration in the form and manner to be prescribed. C. Automatically republishes the original detailed format. D. Applies only to MPs.

Answer: B.

Explanation: [FACT] The duty remains, but the detailed form/manner moved to prescription. The old rules were officially described as redundant.

MCQ 35

Section 63 of the Union Act:

A. Prescribes one national composition for all Lokayuktas. B. Appoints every Lokayukta through the President. C. Requires State establishment by State law but leaves institutional design to State legislation. D. Abolishes pre-existing State Lokayukta laws.

Answer: C.

Explanation: [FACT] The one-year establishment duty does not impose Lokpal's exact model on States.

MCQ 36

Which statement about the statutory wings is most accurate?

A. Both wings were fully staffed from 2014 by operation of the Act alone. B. Inquiry Wing conducts all criminal trials. C. Prosecution Wing is the CBI. D. Inquiry Wing was formally constituted in 2024 and Prosecution Wing in 2025, but formal creation does not prove full staffing or output.

Answer: D.

Explanation: [CURRENT] Official Lokpal records establish the constitution dates and organogram; [LIMIT] capacity and performance require separate evidence.

D. Remedial MCQs — 12 Questions

Visual 64 — Remedial Error Map

Recurring error	Corrective rule
"PM is immune"	PM is covered, but specified domains and a special screen apply
"Lokpal controls all CBI work"	Superintendence is confined to Lokpal-referred matters
"The Union Act standardises Lokayuktas"	Section 63 leaves design to State law
"Wing notified = fully operational"	Constitution, staffing and output are separate facts
"Sanction/attachment = guilt"	These are interim/procedural steps; court adjudication remains
"Original asset-disclosure model continues unchanged"	Section 44 was substituted in 2016

Caption: Remedials target the exact overstatements that UPSC converts into close options.

Remedial MCQ 37

Which is **not** one of the subject domains expressly excluded from a Lokpal inquiry against the Prime Minister?

A. Agriculture and irrigation policy. B. International relations. C. External and internal security. D. Atomic energy and space.

Answer: A.

Explanation: [FACT] Section 14 names international relations, external/internal security, public order, atomic energy and space. It does not create a general policy-domain immunity.

Remedial MCQ 38

Which federal statement is correct?

A. Parliament directly fixes every State Lokayukta's jurisdiction. B. State legislation determines the actual Lokayukta design within each State. C. The Lokpal Chairperson appoints all State Lokayuktas. D. A State Lokayukta is a bench of the Union Lokpal.

Answer: B.

Explanation: [FACT] Section 63 mandates establishment by State law; [ANALYSIS] therefore comparison must be design-variable, not based on a fictitious uniform model.

Remedial MCQ 39

Which statement best captures the Lokpal-CVC relationship?

A. CVC is subordinate to Lokpal for every function. B. Lokpal ceased to have jurisdiction over Groups A and B. C. CVC acts as a statutory preliminary-inquiry channel in referred public-servant categories and reports back as section 20 requires. D. CVC conducts the Special Court trial.

Answer: C.

Explanation: [FACT] Referral/reporting is case- and category-specific. [LIMIT] It does not establish a universal institutional hierarchy.

Remedial MCQ 40

As of the legal control date, the safest statement on Lokpal jurisdiction over sitting High Court judges is:

A. The Supreme Court finally upheld it. B. Parliament expressly amended section 14 to include them. C. Every complaint must proceed without scrutiny. D. The Supreme Court stayed the Lokpal order asserting jurisdiction; no final merits holding should be claimed from that interim order.

Answer: D.

Explanation: [CURRENT] The 20 February 2025 Supreme Court order stayed the impugned Lokpal order. [LIMIT] A stay is not a final precedent deciding the merits.

Remedial MCQ 41

Which date-status pairing is officially supported?

A. Inquiry Wing — constituted 5 September 2024; Prosecution Wing — constituted 6 June 2025 and Gazette-notified 13 June 2025. B. Both wings — constituted automatically on 1 January 2014. C. Inquiry Wing — constituted by the Supreme Court. D. Prosecution Wing — constituted under the CVC Act.

Answer: A.

Explanation: [CURRENT] Official Lokpal/Gazette records support these dates. [LIMIT] They do not alone establish vacancy-free staffing or a quantified case-output history.

Remedial MCQ 42

Which asset-declaration claim is defensible?

A. The 2016 amendment eliminated the legal duty itself. B. The amended Act retains a declaration duty but leaves form and manner to prescription; the old rules were officially treated as redundant. C. *Lok Prahari* automatically restored the original section 44 form. D. Every declaration must, under the present statutory text alone, be uploaded in the original public format.

Answer: B.

Explanation: [FACT] Section 44 was substituted. [LIMIT] *Lok Prahari* concerned electoral disclosure and monitoring; it is not a substitute for rules under the amended provision.

Remedial MCQ 43

An alleged offence occurred eight years before the complaint. Which provision is directly relevant?

A. Section 35's trial target. B. Section 44's asset declaration. C. Section 53's seven-year complaint bar. D. Section 63's State duty.

Answer: C.

Explanation: [FACT] Section 53 counts from the date on which the alleged offence was committed.

Remedial MCQ 44

Which statement correctly separates the two removal routes?

A. Every removal requires one hundred MPs. B. Every removal requires only a presidential order. C. Lokpal itself finally removes a Member. D. Misbehaviour ordinarily uses the parliamentary-petition/Supreme Court inquiry route, while specified grounds such as insolvency permit direct presidential removal.

Answer: D.

Explanation: [FACT] Section 37 contains both routes. Mixing it with CVC/NHRC removal procedures produces a wrong answer.

Remedial MCQ 45

Why must an answer distinguish allegation from guilt?

A. Lokpal's scrutiny, inquiry, investigation and sanction are process stages; criminal guilt is adjudicated by the Special Court. B. Lokpal has no role after receiving a complaint. C. Every complaint automatically proves misconduct. D. Departmental action and criminal conviction are identical.

Answer: A.

Explanation: [ANALYSIS] Due-process vocabulary is essential: prima facie satisfaction, evidence collection and prosecution are not conviction.

Remedial MCQ 46

Before Lokpal decides the statutory course on a preliminary inquiry report:

A. It must publish the complete file. B. The public servant is afforded an opportunity of being heard under section 20. C. The complainant becomes the prosecutor. D. The agency may impose sentence.

Answer: B.

Explanation: [FACT] Section 20 builds hearing safeguards into the post-report decision stage.

Remedial MCQ 47

Which entity-coverage statement is most accurate?

A. Every private association in India is automatically under Lokpal. B. Only Union Ministries can ever be covered. C. The Act extends to specified government-connected or financed entities and to specified foreign-contribution recipients, subject to statutory/notification conditions. D. Foreign contribution is irrelevant to jurisdiction.

Answer: C.

Explanation: [FACT] Sections 14(1)(g)-(h) are conditional coverage clauses; they should not be rewritten as a general private-sector jurisdiction.

Remedial MCQ 48

Which institutional chain is correct?

A. Lokpal convicts, CBI appeals, CVC pardons. B. CVC appoints Lokpal and Lokpal appoints judges. C. CBI controls every Lokpal bench. D. Lokpal may route/supervise referred inquiry or investigation, an agency gathers material, the Prosecution Wing may pursue the case, and a Special Court adjudicates.

Answer: D.

Explanation: [ANALYSIS] This is a functional chain, not a claim that one institution is generally subordinate to another.

Visual 65 — Complete Objective-Practice Rotation

Q01-04 A B C D Q05-08 A B C D Q09-12 A B C D
Q13-16 A B C D Q17-20 A B C D Q21-24 A B C D
Q25-28 A B C D Q29-32 A B C D Q33-36 A B C D
Q37-40 A B C D Q41-44 A B C D Q45-48 A B C D

Caption: All 48 original/remedial answer markers follow one uninterrupted A-B-C-D cycle.

E. Original Solved Mains Practice — 8 Questions

[LIMIT] Every question in this section is original practice, not a claimed UPSC PYQ.

Mains 1 — 10 marks | 150 words

Question: “The Lokpal is an ombudsman, not a corruption court.” Explain.

Visual 66 — Demand Decoder

Term	What the answer must establish
Ombudsman	Receives and processes public-integrity grievances
Not a court	Does not itself conduct the criminal trial or convict
Statutory powers	Inquiry, referral, superintendence, sanction, attachment
Qualification	Special Court retains adjudicatory role

Caption: The answer should define, distinguish and then qualify.

Evidence spine

1. [FACT] Lokpal and Lokayuktas Act, 2013 establishes the institution.
2. [FACT] Sections 11-12 provide Inquiry and Prosecution Wings.
3. [FACT] Section 20 separates preliminary inquiry, investigation and prosecution decisions.
4. [FACT] Sections 29-32 provide attachment/confiscation processes under court control.
5. [FACT] Section 35 provides for Special Courts and trial timelines.

Model answer

The Lokpal is India's statutory anti-corruption ombudsman at the Union level. It receives complaints against covered public functionaries and subjects them to a legally structured process.

Its functions are substantial: it may order a preliminary inquiry or investigation, use the CVC for specified public-servant categories, exercise superintendence over the DSPE in Lokpal-referred matters, protect investigating officers from transfer without approval, authorise search and seizure, initiate provisional attachment, grant prosecution sanction in the statutory route and use its Prosecution Wing.

However, these are **screening, evidence-gathering and prosecution-enabling powers**, not final criminal adjudication. A preliminary inquiry tests whether a prima facie case exists; an investigation collects evidence; sanction permits prosecution. Attachment is provisional and comes under Special Court control. The Special Court, applying criminal law and due process, decides guilt and punishment.

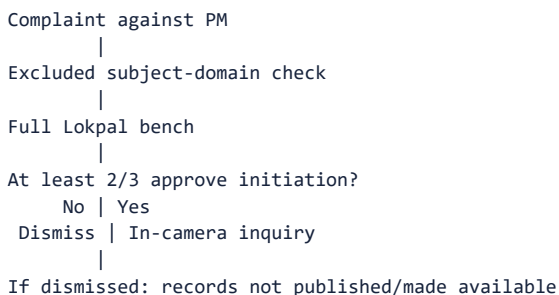
Thus, calling Lokpal a "corruption court" exaggerates its legal character. It is better understood as an institutional gateway and integrity coordinator with defined coercive powers, while adjudication remains judicial.

Examiner value-add: Use the line "process authority is not adjudicatory guilt".

Mains 2 — 10 marks | 150 words

Question: Discuss the special statutory safeguards governing complaints against the Prime Minister under the Lokpal and Lokayuktas Act.

Visual 67 — PM Safeguard Funnel



Caption: Coverage exists, but it is filtered by substantive and procedural safeguards.

Evidence spine

- [FACT] Section 14 covers a person who is or has been Prime Minister.
- [FACT] Excluded domains: international relations, external/internal security, public order, atomic energy and space.
- [FACT] Full bench and at least two-thirds approval are required.
- [FACT] Inquiry is in camera; dismissed-inquiry records receive special secrecy protection.

Model answer

The Act rejects both extremes of complete Prime Ministerial immunity and ordinary identical treatment.

First, it places a serving or former Prime Minister within Lokpal jurisdiction. Secondly, it excludes allegations relating to international relations, external or internal security, public order, atomic energy and space. These exclusions protect high-sensitivity sovereign decision-making, but they are subject-specific rather than a blanket personal immunity.

Thirdly, initiation requires consideration by the **full bench** of the Lokpal and approval by at least **two-thirds of its Members**. Fourthly, the inquiry must be held **in camera**. If the complaint is dismissed, the records of the inquiry cannot be published or made available to anyone.

[ANALYSIS] These safeguards seek to reconcile high-office accountability with governmental stability, confidentiality and protection against politically motivated complaints. Yet the high threshold and secrecy can reduce public visibility. The best reform approach is therefore not to dilute the statutory test casually, but to ensure reasoned institutional processes and aggregate transparency consistent with the secrecy clause.

Mains 3 — 10 marks | 150 words

Question: Why does section 63 not create a uniform national model of Lokayuktas?

Visual 68 — Federal Design Matrix

What section 63 does	What it does not do
Requires every State to establish a Lokayukta	Prescribe identical composition
Requires establishment through State law	Fix one appointment process
Sets a Union statutory expectation	Uniformly define CM/minister/bureaucracy jurisdiction
Leaves operative design to States	Equalise powers, budgets or removal safeguards

Caption: A common duty coexists with decentralised institutional design.

Evidence spine

- [FACT] Section 63 requires establishment “by a law made by the State Legislature”.
- [FACT] State laws predated the Union Act in several jurisdictions.
- [ANALYSIS] Composition, jurisdiction, tenure, investigative powers and accessibility are design variables.

Model answer

Section 63 of the 2013 Act requires every State to establish a Lokayukta, but directs that this be done **through State legislation**. It does not transplant the Union Lokpal’s composition, selection committee, jurisdiction or powers into every State.

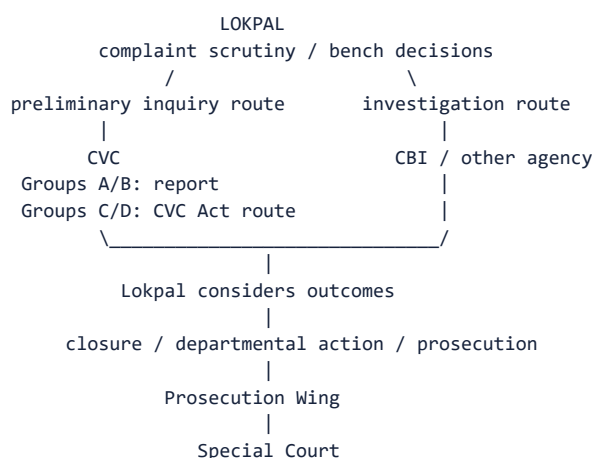
Consequently, State institutions differ on whether the Chief Minister is covered and with what exceptions; which ministers, legislators, officials and local bodies fall within jurisdiction; whether the institution has an investigative wing; how recommendations are enforced; and how appointments, tenure, removal, finance and reporting operate. Older State statutes also reflect their own institutional histories.

[ANALYSIS] This diversity respects federal legislative space and allows contextual design. However, it can generate unequal anti-corruption safeguards, weak enforcement in some States and confusing inter-State comparison. Reform should therefore favour **minimum process principles**—transparent appointments, secure finance, timely filling of vacancies, reasoned disposal and public annual reporting—while preserving State legislative choice rather than imposing an inflexible national template.

Mains 4 — 15 marks | 250 words

Question: Analyse the Lokpal-CVC-CBI relationship. Why is it misleading to describe it as a simple hierarchy?

Visual 69 — Functional Relationship Map



Caption: Authority changes with the function, category and case stage.

Evidence spine

1. [FACT] Section 20 provides assign the CVC different roles for Groups A/B and C/D.

2. [FACT] Section 25 grants Lokpal superintendence/directions over DSPE only for referred matters.
3. [FACT] Lokpal cannot require a particular investigation/disposal outcome.
4. [FACT] Transfer of a DSPE officer investigating a referred case needs Lokpal approval.
5. [FACT] Agency investigation, Lokpal decision, prosecution and trial are distinct.

Model answer

The Lokpal, CVC and CBI form a differentiated anti-corruption chain rather than a single command pyramid.

When Lokpal chooses a preliminary inquiry for covered Union public servants, section 20 routes the matter to the CVC. For Groups A and B, the CVC reports its findings to Lokpal; for Groups C and D, it proceeds under the CVC Act framework. Thus, the CVC is a statutory inquiry channel whose precise accountability depends on employee category.

Where investigation is ordered, the CBI/DSPE or another agency gathers criminal evidence. For matters referred by Lokpal, section 25 vests Lokpal with superintendence and power to give directions. Yet the proviso bars directions requiring investigation or disposal in a particular manner. The transfer of the investigating DSPE officer requires Lokpal approval, protecting continuity without making Lokpal the operational investigator.

After reports are received, Lokpal may close the case, order departmental action or move toward prosecution. Its Prosecution Wing may file and conduct cases, while a Special Court adjudicates guilt.

Calling this a hierarchy is misleading for three reasons. First, Lokpal's authority is **case-specific**, not a general takeover of the CVC or CBI. Second, specialised functions remain institutionally separated. Third, statutory safeguards preserve professional investigation and judicial adjudication.

[ANALYSIS] The arrangement's strength is coordinated accountability; its weakness is multi-agency delay and blurred responsibility. Interoperable digital case tracking, reasoned inter-agency timelines and aggregate stage-wise reporting can improve performance without destroying functional autonomy.

Mains 5 — 15 marks | 250 words

Question: Evaluate the appointment and removal architecture of the Lokpal from the standpoint of independence and accountability.

Visual 70 — Independence-Accountability Balance Sheet

Independence device	Accountability/concern
Multi-member Selection Committee	Executive and political office-holders remain influential
Judicial participant	Does not make selection judicially controlled
Expert Search Committee with diversity	Selection Committee may go beyond its panel
Fixed tenure/age ceiling	Vacancy and delayed appointment can weaken capacity
Salary/service protection	Institution still needs administrative resources
Supreme Court inquiry for misbehaviour	High threshold can make removal deliberately difficult
Direct grounds for insolvency/infirmity etc.	Must not be used to bypass misbehaviour inquiry

Caption: Independence depends on both legal design and timely institutional practice.

Evidence spine

- [FACT] President appoints on Selection Committee recommendation.
- [FACT] Committee: PM, Speaker, LoP, CJI/nominee and eminent jurist.
- [FACT] Search Committee has at least seven experts and a representation floor.
- [FACT] Vacancy does not invalidate appointment.
- [FACT] Five-year/age-70 tenure; post-tenure restrictions.
- [FACT] Section 37 separates misbehaviour inquiry and direct grounds.

Model answer

The Lokpal's architecture attempts to combine plural selection, tenure security and high-threshold removal.

Appointments are formally made by the President on recommendation of a Selection Committee comprising the Prime Minister, Lok Sabha Speaker, Lok Sabha Leader of Opposition, Chief Justice of India or nominee, and an eminent jurist nominated through the statutory process. A Search Committee of at least seven experts, with a diversity requirement, prepares a panel. This broadens inputs beyond the executive.

However, the executive-political component is substantial, the Search Committee's panel is not exclusive, and the present text names the LoP without itself creating a largest-opposition-party substitute. Section 4(2) and *Common Cause* make the institution workable despite vacancy, but they do not eliminate concern about truncated deliberation. Transparent criteria and timely vacancy calendars are therefore important.

Independence is further supported by a fixed tenure of five years or age seventy, protected service conditions and post-tenure restrictions that reduce patronage incentives. For removal on misbehaviour, a petition signed by at least one hundred MPs precedes Presidential reference and Supreme Court inquiry. Suspension may operate during the process. Separate direct grounds—such as insolvency or paid outside employment—address objectively specified incapacity or conflict.

[ANALYSIS] The design is defensible because easy executive removal would destroy independence, while complete insulation would weaken accountability. Its real test is procedural transparency: published eligibility standards, disclosed selection stages consistent with privacy, timely filling of posts, reasoned institutional reporting, and strict separation of direct-removal grounds from the judicial misbehaviour route.

Mains 6 — 15 marks | 250 words

Question: Examine whether the inquiry-investigation-prosecution pipeline under the Lokpal Act adequately balances effectiveness with due process.

Visual 71 — Process and Safeguard Matrix

Stage	Effectiveness tool	Due-process control
Complaint	Prescribed filing and scrutiny	Identity, affidavit and particulars reduce vague accusation
Preliminary inquiry	CVC/Inquiry Wing or agency route	Prima facie threshold and public-servant hearing
Investigation	CBI/other agency; six-month norm	Recorded reasons for extension
Decision	Three-Member bench options	Closure and opportunity provisions
Attachment	Preserve suspected proceeds	Reasons, ninety-day limit, Special Court control
Prosecution	Lokpal sanction/Prosecution Wing	Sanction is not conviction
Trial	Dedicated Special Court	Judicial adjudication and statutory timeline

Caption: The Act distributes power across stages instead of concentrating accusation, investigation and guilt.

Evidence spine

- Complaint Rules, 2020.
- Sections 20, 25-32 and 35.
- [CURRENT] Formal Inquiry/Prosecution Wing constitution.
- [LIMIT] Notifications prove structure, not complete staffing or speed.

Model answer

The Act uses a staged pipeline to prevent both impunity and punishment by mere allegation.

A complaint must satisfy prescribed form and supporting requirements. Lokpal then decides whether to use preliminary inquiry or investigation. Preliminary inquiry tests prima facie substance; it is not a trial. For public-servant categories, CVC routing distributes workload. Reports have prescribed timelines, and the public servant receives an opportunity of hearing before the statutory course is selected.

Investigation by the CBI or another agency is evidence-oriented and ordinarily subject to a six-month timeline, with extensions requiring recorded reasons. A three-Member Lokpal bench then considers closure, departmental action or prosecution. Search, seizure and provisional attachment preserve material or suspected proceeds, but attachment is time-bound and subject to Special Court control. Prosecution sanction enables proceedings; the Special Court alone adjudicates guilt.

This design serves effectiveness through specialised agencies, continuity safeguards for investigating officers, own statutory wings, coercive preservation powers and dedicated courts. It protects due process through complaint particulars, prima facie filtering, hearing, recorded reasons, bench decisions and judicial control.

Yet [ANALYSIS] multi-stage routing can also produce delay, responsibility gaps and opaque closure. Formal constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025 is institutionally relevant but cannot, without staffing/output evidence, establish full capacity.

The balance should be strengthened through stage-wise public dashboards using aggregate data, speaking closure orders subject to lawful confidentiality, interoperable case files, independent staffing and routine publication of reasons for systemic delay—not by collapsing inquiry, investigation and adjudication into one body.

Mains 7 — 20 marks | 250 words

Question: “The Lokpal Act is broad in jurisdiction but filtered in operation.” Critically analyse with reference to covered persons, parliamentary privilege, the Prime Minister, limitation and institutional procedure.

Visual 72 — Breadth-versus-Filter Grid

Breadth of reach	Operational filter
PM, present/former	Excluded domains, full bench, two-thirds threshold, in-camera
Union Ministers	Complaint and section 20 process
MPs	Article 105(2) speech/vote protection
Groups A-D public servants	CVC category routing
Former public servants	Conduct must relate to covered period
Government-linked/financed bodies	Statutory and notified conditions
Specified foreign-contribution entities	Monetary threshold in section 14(1)(h)
Historical allegations	Seven-year bar under section 53

Caption: Jurisdictional inclusion does not mean automatic investigation or guilt.

Evidence spine

1. Section 14 person/entity coverage.
2. Article 105(2) and section 14(2); *Sita Soren* on bribery.
3. PM provisos.
4. Section 20 process.
5. Section 53 limitation.

Model answer

The Lokpal Act deliberately reaches high political office and the administrative hierarchy, but translates that reach into action through legal filters.

Its jurisdiction covers a person who is or has been Prime Minister; Union Ministers; MPs; Groups A, B, C and D Union public servants; former functionaries for conduct during the covered period; and specified officers of government-connected, financed or foreign-contribution-receiving entities. This breadth counters the idea that anti-corruption oversight should stop below the political executive.

Breadth is nevertheless qualified. A PM complaint cannot concern the listed sovereign domains and requires a full-bench, two-thirds decision, in-camera inquiry and special control over dismissed records. For MPs, section 14(2)

respects Article 105(2) for anything said or any vote given in Parliament. After *Sita Soren*, bribery is not protected merely because it relates to a legislative vote, but genuine speech/vote functions remain privileged.

For officials, preliminary-inquiry routing through the CVC varies between Groups A/B and C/D. Covered entities depend on statutory and, in some clauses, notified financial conditions. Former status does not create immunity, but jurisdiction is tied to the period of covered service. Section 53 bars a complaint after seven years from the alleged offence.

Procedure supplies further filters: prescribed complaint material, scrutiny, prima facie inquiry, hearing, three-Member bench consideration, professional investigation and Special Court adjudication. These protect reputation and institutional stability.

[ANALYSIS] Filters are legitimate when they secure due process; they become problematic if vacancy, delay, secrecy or inter-agency dependence makes them barriers to accountability. Reforms should therefore distinguish **safeguard from obstruction**: retain evidentiary thresholds and judicial control, but publish aggregate stage-wise outcomes, fill posts predictably, strengthen own-wing capacity and record reasons for delay or closure. The Act's success depends not only on whom it covers, but on whether a credible complaint can traverse the filtered pathway in time.

Mains 8 — 20 marks | 250 words

Question: Assess the institutional strengths and weaknesses of the Lokpal framework. Suggest reforms that preserve federalism, due process and investigative autonomy.

Visual 73 — Reform Priority Ladder

```

HIGH IMPACT / LOW LEGAL DISRUPTION
vacancy calendar | staffing | digital case tracking
aggregate reporting | reasoned stage timelines
-----
rules/standards clarification | agency protocols
transparent selection and search criteria
-----
carefully debated statutory amendments only
=====
Preserve: court adjudication, professional investigation,
State legislative space, fair-hearing safeguards
```

Caption: Administrative repair should precede indiscriminate concentration of power.

Evidence spine

- Broad section 14 jurisdiction and PM safeguards.
- Plural selection, fixed tenure, removal protection.
- Inquiry/Prosecution Wings and Special Courts.
- CVC/CBI functional dependence and section 25 limits.
- Section 44 prescription gap/status caution.
- Section 63 State-law diversity.
- *Common Cause*, *Sita Soren*, *Lok Prahari* boundary and 2025 High Court-judge stay.

Model answer

The Lokpal framework's principal strength is that it makes high-level corruption subject to a statutory, multi-stage institution rather than leaving it entirely to executive vigilance. Jurisdiction extends from the Prime Minister, with special safeguards, to Ministers, MPs within privilege limits, Union officials and specified entities. A diverse multi-member body, fixed tenure, protected removal route, own Inquiry and Prosecution Wings, referred-case superintendence over the CBI, attachment powers and Special Courts create an integrated accountability architecture.

Its restraint is also a strength. Complaint does not equal guilt; preliminary inquiry, investigation, sanction and trial remain distinct. Lokpal cannot direct CBI disposal in a particular manner, and court control follows attachment and prosecution. State Lokayuktas are established through State law, preserving federal design choice.

Weaknesses arise in implementation. Multi-agency routing can fragment responsibility; vacancies and delayed institutional creation reduce capacity; executive-political influence remains in selection; Search Committee

recommendations are non-exclusive; and secrecy or sparse reasoned reporting may obscure closure patterns. The amended section 44 depends on prescribed form/manner, and checked official repositories did not yield a later fresh replacement for the old redundant rules. Formal wing constitution does not by itself prove full staffing or performance. State diversity can become unequal minimum protection.

Reforms should:

1. publish advance vacancy calendars and transparent eligibility/selection criteria;
2. ensure independent staffing and budget execution for both wings;
3. create interoperable, time-stamped Lokpal-CVC-CBI case tracking;
4. publish aggregate stage-wise receipts, closures, referrals and delay reasons without freezing volatile counts in static notes;
5. clarify current asset-declaration rules through valid prescription;
6. develop model minimum Lokayukta principles—-independent selection, finance, reporting and reasoned disposal—without imposing one rigid State structure;
7. preserve agency professionalism, fair hearing and Special Court adjudication.

[ANALYSIS] The correct reform objective is not a legally omnipotent super-agency. It is a capable, transparent coordinator whose independence is matched by due process, reviewable reasons and federal sensitivity.

Visual 74 — Eight-Answer Reuse Matrix

Theme	Useful questions
Statutory character and powers	Mains 1, 6
PM accountability	Mains 2, 7
Federalism/Lokayuktas	Mains 3, 8
CVC-CBI coordination	Mains 4, 6, 8
Independence/removal	Mains 5, 8
Due process	Mains 1, 6, 7
Reform	Mains 3-8

Caption: Reuse evidence, but reshape the argument to the directive and word limit.

Final Consolidated Register Notes

1. Identity and Core Status

One-line definition: [FACT] The Lokpal is a **statutory Union anti-corruption ombudsman** created by the Lokpal and Lokayuktas Act, 2013; it is neither a constitutional body nor a criminal court.

Visual 75 — Identity Card

Field	Register entry
Source	Lokpal and Lokayuktas Act, 2013
Nature	Statutory, multi-member
Level	Union
Core role	Complaint scrutiny, preliminary inquiry/investigation routing, prosecution-enabling decisions
Adjudication	Special Court
State counterpart	Lokayukta under State law

Caption: Identify legal source, institutional level and functional boundary in the introduction.

2. Evolution

Swedish ombudsman idea

->

Administrative Reforms Commission recommends Lokpal/Lokayukta

->

Repeated parliamentary Bills

->

Civil-society mobilisation as bounded political context

->

Lokpal and Lokayuktas Act, 2013

->

Commencement in 2014

->

2016 asset-declaration amendment

->

Institution-building: Complaint Rules 2020,

Inquiry Wing 2024, Prosecution Wing 2025

[LIMIT] Do not reduce the Act's evolution to one movement or one Bill. Administrative reform proposals, legislative iterations, political pressure and final parliamentary enactment are distinct stages.

3. Composition

Element	Exact rule
Chairperson	One
Members	Not more than eight
Judicial Members	50% of Members
Representation	Not less than 50% of Members from SC/ST/OBC/minorities/women categories
Minimum age	45
Non-judicial expertise	At least 25 years in listed fields
Tenure	Five years or age 70, whichever earlier

Trap: The Chairperson is not included in the denominator when the Act says "Members".

Chairperson eligibility

- [FACT] Current/former Chief Justice of India; or
- [FACT] Current/former Supreme Court Judge; or
- [FACT] Eminent person satisfying statutory integrity, ability, expertise and experience criteria.

Judicial Member

- [FACT] Current/former Supreme Court Judge; or

- [FACT] Current/former Chief Justice of a High Court.

Other Member

- [FACT] Impeccable integrity and outstanding ability;
- [FACT] At least twenty-five years' special knowledge/expertise in the named fields.

4. Disqualifications and Post-Tenure Controls

No MP/State or UT legislator
 No person convicted for offence involving moral turpitude
 No age below 45
 No Panchayat/Municipality member
 No person removed/dismissed from Union or State service
 No disqualifying office/business/profession retained on appointment

[FACT] Reappointment is generally barred. A Member may become Chairperson only within the aggregate five-year Lokpal-tenure limit. Post-tenure restrictions curb executive rewards and electoral-office incentives.

5. Appointment



[FACT] The eminent jurist is nominated by the President on recommendation of the other four Selection Committee members.

[FACT] Section 4(2): vacancy in the Selection Committee does not invalidate an appointment.

[FACT] *Common Cause v Union of India*: the Act remained workable despite absence of a recognised LoP; a truncated committee could proceed.

[LIMIT] Current section 4 names the **Leader of Opposition**. Do not invent a largest-opposition-party statutory substitute in this Act.

6. Removal and Suspension

Route	Trigger/process
Misbehaviour	Petition signed by at least 100 MPs -> President -> Supreme Court inquiry -> Presidential removal if proved
Suspension	President may suspend/restrict attendance during the statutory process
Direct grounds	Insolvency; paid outside employment during tenure; infirmity rendering person unfit

Trap: Do not copy the CVC or NHRC removal formula. Use section 37.

7. Jurisdiction

Covered category	Qualification
PM/former PM	Special exclusions and procedure
Union Minister/former Minister	Covered
MP/former MP	Article 105(2) speech/vote protection
Groups A-D Union public servants	Category-specific CVC routing may apply
Former public servants	Conduct during covered period
Government-created/controlled/financed bodies	Statutory and notification conditions
Specified societies/trusts/entities	Clause-specific funding/foreign-contribution conditions

[FACT] Section 1(3) extends the Act to public servants **in and outside India**.

[FACT] Section 14(1)(h) uses foreign-source donations exceeding ten lakh rupees in a year or a higher notified amount.

[LIMIT] Avoid stating a notification-dependent government-financing amount unless the current notification is produced.

8. Prime Minister Safeguards

MEMORY: **Mnemonic: “I-S-P-A-S”** International relations | external/internal **Security** | **P**ublic order | **A**tomistic energy | **S**pace

PM covered
BUT
I-S-P-A-S subject exclusions
+
full bench
+
2/3 of Members approve initiation
+
in-camera inquiry
+
dismissed records not published/made available

[ANALYSIS] Accountability is preserved without treating sensitive sovereign functions as an ordinary complaint domain.

9. MPs and Privilege

[FACT] Section 14(2) respects Article 105(2) for anything said or a vote given in Parliament or its committees.

[FACT] *Sita Soren v Union of India* (2024): bribery is not immunised merely because it is connected to a legislative vote or speech.

[LIMIT] The judgment does not abolish parliamentary privilege; it separates protected legislative function from bribery.

10. Complaint-to-Trial Pipeline

Complaint Rules 2020 requirements
 |
 scrutiny / jurisdiction / limitation
 |
 Lokpal chooses preliminary inquiry OR investigation
 |
 PI: Inquiry Wing/CVC/agency -> prima facie report
 |
 public servant heard
 |
 3-Member bench:
 close | departmental action | investigation/prosecution route
 |
 investigation by CBI/other agency
 |
 report + Lokpal decision + sanction
 |
 Prosecution Wing
 |
 Special Court: guilt/punishment

Timeline capsule

Stage	Statutory control
Preliminary report	60 days from reference
Ordinary preliminary inquiry	90 days + up to 90 days for recorded reasons
Investigation	Six months; recorded extensions up to six months at a time
Special Court trial	One-year target; three-month recorded extensions; total up to two years

[LIMIT] These are statutory timelines/targets. Do not infer that every case actually concludes within them.

11. CVC and CBI Links

Lokpal preliminary-inquiry reference:
 Groups A/B -> CVC inquires, reports to Lokpal
 Groups C/D -> CVC proceeds under CVC Act

Lokpal investigation reference:
 CBI/other agency investigates
 Lokpal superintendence/directions for referred DSPE matters
 but no direction to investigate/dispose in a particular manner
 and investigating officer transfer needs Lokpal approval

[ANALYSIS] This is a statutory network of allocated functions, not a simple universal hierarchy.

12. Wings and Capacity

Wing	Section	Verified current control
Inquiry Wing	11	Constituted 5 September 2024
Prosecution Wing	12	Constituted 6 June 2025; Gazette 13 June 2025
Organogram	—	Revised official structure dated 13 September 2024

[LIMIT] Notification or organogram proves formal structure, not that every sanctioned post is filled or that a claimed volume of work was completed.

13. Powers — Use Precise Verbs

Power	Precise description	Do not write
DSPE	Superintend/direction in referred matters	Controls all CBI cases
Transfer	Approves transfer of referred-case investigating officer	Appoints all CBI officers
Search	Authorises entrusted agency to search/seize	Lokpal is a police force
Civil procedure	Summons, documents and specified inquiry powers	Lokpal is a civil court for all purposes
Attachment	Provisional, reasoned, time-bound, court-controlled	Confiscates finally by itself
Sanction	Enables prosecution through statutory route	Convicts accused
Prosecution	Wing files/conducts case	Wing replaces judiciary

14. Asset Declarations

Original 2014 framework

->

2016 amendment substitutes section 44

->

duty retained

->

form and manner to be prescribed

->

old rules officially described as redundant

[CURRENT] In the official repositories checked for this package, no later fresh replacement rules were located.

[LIMIT] Do not claim that the original online public-disclosure format continues unchanged.

[FACT] *Lok Prahari* addresses candidate/legislator electoral asset disclosure and monitoring; it does not itself supply rules under amended section 44.

15. Limitation

Section 53: No inquiry if the complaint is made after **seven years from the date of the alleged offence**.

Trap table

Wrong anchor	Correct anchor
Date of retirement	Date of alleged offence
Date of discovery	Date of alleged offence
Date Lokpal was established	Date of alleged offence

16. Lokayuktas and Federalism

Section 63 common duty

+

State legislation

=

non-uniform Lokayukta designs

Compare States only across variables:

1. Composition;
2. Appointment and consultation;
3. CM/minister/legislator jurisdiction;
4. Bureaucracy/local-body coverage;
5. Own inquiry/investigation power;
6. Binding or recommendatory consequences;

7. Tenure/removal;
8. Finance/staffing;
9. Complaint accessibility;
10. Reporting and legislative follow-up.

[LIMIT] Do not freeze a State-by-State vacancy list or a national “number of functioning Lokayuktas” without a same-date official audit.

17. Cases and Current Controls

Authority	Safe holding/status
<i>Common Cause v Union of India</i>	Act workable despite LoP vacancy; appointment not invalid merely for vacancy
<i>Sita Soren v Union of India</i>	Bribery not protected by legislative privilege
<i>Lok Prahari v Union of India</i>	Electoral asset disclosure/monitoring context; not restoration of original section 44
Supreme Court order, 20 Feb 2025	Stayed Lokpal's order asserting jurisdiction over a sitting High Court judge; no final merits holding claimed

18. Independence and Accountability Scorecard

Strength	Limitation
Broad high-office jurisdiction	PM and privilege filters
Diverse multi-member design	Selection remains executive-political heavy
Fixed tenure and protected removal	Vacancies can erode real capacity
Own statutory wings	Formal creation is not staffing/output proof
Referred-case CBI safeguards	Continued operational reliance on external agencies
Special Courts	Timelines can face system delay
Complaint rules and hearing	Filters may become procedural bottlenecks
Federal State-law model	Unequal Lokayukta strength across States

19. Reform Spine

Timely appointments
 +
 independent staff and budget execution
 +
 interoperable Lokpal-CVC-CBI case tracking
 +
 aggregate stage-wise transparency
 +
 reasoned closure/delay reporting
 +
 valid updated asset-declaration prescription
 +
 minimum Lokayukta process principles
 =
 capacity + accountability + due process + federal respect

[ANALYSIS] Reform proposals must be labelled proposals. They are not existing law.

20. Prelims Rapid Revision — 20 Facts

1. [FACT] Lokpal is statutory, not constitutional.
2. [FACT] One Chairperson plus not more than eight Members.
3. [FACT] 50% of Members are Judicial Members.
4. [FACT] At least 50% of Members satisfy the representation rule.
5. [FACT] Minimum entry age is 45.
6. [FACT] Non-judicial expertise requirement is at least 25 years.
7. [FACT] Tenure is five years or age 70.
8. [FACT] President appoints on Selection Committee recommendation.
9. [FACT] Search Committee has at least seven experts.
10. [FACT] Search Committee panel is not exclusive.
11. [FACT] Selection Committee vacancy does not invalidate appointment.
12. [FACT] PM is covered with special safeguards.
13. [FACT] MPs retain Article 105(2) protection, but bribery is not privilege.
14. [FACT] Groups A-D Union officials are covered.
15. [FACT] Preliminary inquiry and investigation are different.
16. [FACT] Lokpal superintendence over CBI is referred-matter specific.
17. [FACT] Section 53 uses a seven-year bar.
18. [FACT] Section 44 was substituted in 2016.
19. [FACT] Section 63 leaves Lokayukta design to State legislation.
20. [FACT] Special Court, not Lokpal, decides criminal guilt.

21. Mains Answer Spine

INTRO: statutory ombudsman + purpose

BODY 1: exact legal architecture

BODY 2: functional strengths

BODY 3: due-process/federal/operational limitations

BODY 4: evidence-led reforms

CONCLUSION: capable coordinator, not omnipotent super-agency

Final takeaway: [ANALYSIS] India's Lokpal framework is best judged through a four-part discipline—**legal reach, procedural filters, institutional capacity and judicially controlled outcomes.**